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CLERK, U.S. DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA
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2:26-CV-0195-TLN-AC (PS)

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, CASOMB-certified treatment provider, as state actor;
KATIE PALACIOS, Director of HOPE Program – Stockton, employed by HOPE Psychotherapy, Inc., in individual capacity;
JEFF MACOMBER, Secretary of the California Department of Corrections and Rehabilitation, in official capacity;
BRYAN BISHOP, Director of the Division of Adult Parole Operations, in official capacity;
KEELY DODD, Parole Administrator, in individual capacity;
LONG MOUA, Parole Agent, in individual capacity;
GARY NOGUCHI, Unit Supervisor, in individual capacity;
A. DERRICK, Parole Agent, in individual capacity;
JOSEELYN ROJO, Parole Agent, in individual capacity,

Defendants.

COMPLAINT FOR VIOLATION OF CIVIL RIGHTS UNDER 42 U.S.C. § 1983
(Procedural Due Process)

DEMAND FOR JURY TRIAL

INTRODUCTION

1. Plaintiff BRENDAN NGEHSI NEWANFORBI brings this civil rights action under 42 U.S.C. § 1983 to challenge a systemic, policy-driven deprivation of procedural due process. This case does not ask whether Defendants made the "right" parole decision—it asks whether they followed any constitutional procedure at all. The answer, documented in their own records, is no. California's parole discharge framework creates mandatory procedures: scoring criteria, aggregation bands, good-cause findings, CTM documentation, Form 3043, and notice requirements. Defendants ignored every single one. They fabricated an eligibility rule that contradicts state statute—specifically, denying discharge based on a categorical "10-year parole term" ineligibility rule that does not exist in California law. They relied on contradictory factual premises. They delegated liberty-affecting determinations to a private treatment provider operating a system that California courts have already condemned as "vitiating the Legislature's directive." And they never told Plaintiff what they decided. These are not discretionary judgment calls. These are procedural nullities. The Discharge Review Report is facially defective under California's own regulations and the United States Constitution.

2. California's structured parole discharge framework—with mandatory criteria, scoring bands, and procedural requirements codified in Title 15 of the California Code of Regulations—creates enforceable liberty interests that trigger constitutional due process protections. Defendants' systematic violations of these procedures deprived Plaintiff of liberty without due process of law.

3. Critically, California courts have already found that CDCR's policy of indefinite treatment retention—the very system Defendants applied to Plaintiff—"vitiates the Legislature's directive" under Penal Code § 3008(d)(2). *In re Frederick Dwyer*, No. SC-080355A (San Mateo Super. Ct. Mar. 20, 2023). Despite this judicial condemnation and subsequent regulatory amendments in April 2025, Defendants continue operating the same unconstitutional system that traps parolees in perpetual treatment without individualized assessment, good-cause findings, or any meaningful path to completion.

4. Defendants' process is structurally incapable of producing a lawful discharge outcome because it treats treatment completion as a prerequisite for discharge while simultaneously operating a policy under which treatment cannot be completed until discharge. The discharge review therefore functions as a pretextual formality rather than a meaningful adjudication. CDCR's policy creates a structural loop where treatment non-completion (impossible pre-discharge) automatically bars discharge, nullifying Penal Code § 3001(a)(2)'s presumption.

5. Plaintiff does not seek a judicial order terminating his parole. He seeks an order compelling the state to provide the constitutionally adequate process to which he is entitled, which may or may not result in his earlier discharge. His claim is therefore cognizable under § 1983. *Wilkinson v. Dotson*, 544 U.S. 74, 82 (2005).

JURISDICTION AND VENUE

6. This Court has subject matter jurisdiction under 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3) (civil rights). This action arises under 42 U.S.C. § 1983 and the Fourteenth Amendment to the United States Constitution.

7. Venue is proper in the Eastern District of California under 28 U.S.C. § 1391(b) because a substantial part of the events giving rise to this claim occurred in San Joaquin County, California, within this judicial district. Plaintiff is supervised by the Stockton 2 GPS Parole Unit, and the challenged Discharge Review Report was prepared and finalized by personnel assigned to that unit. All Defendants are subject to personal jurisdiction in this district.

8. Plaintiff seeks declaratory and injunctive relief under 28 U.S.C. §§ 2201-2202, as well as compensatory and punitive damages under 42 U.S.C. § 1983.

9. This action challenges only the procedures used—or ignored—in Plaintiff's discharge review. It does not challenge the substantive merits of any parole decision and does not seek immediate or automatic release from parole. Unlike *Swarthout v. Cooke*, 562 U.S. 216 (2011), which addressed the substantive sufficiency of evidence, this action challenges the procedural validity of the decision-making framework itself—specifically the use of fabricated eligibility criteria, contradictory factual premises, and total absence of required procedural safeguards. Should Defendants conduct a constitutionally adequate review and find good cause for retention, that decision would be subject to deferential review, not de novo reconsideration. This claim is cognizable under Section 1983, not habeas corpus. *Wilkinson v. Dotson*, 544 U.S. 74 (2005); *Ramirez v. Galaza*, 334 F.3d 850, 859 (9th Cir. 2003).

10. Administrative exhaustion is not required under *Patsy v. Board of Regents*, 457 U.S. 496 (1982). Moreover, Plaintiff is on parole, not incarcerated, and is therefore not subject to the Prison Litigation Reform Act's exhaustion requirement. See *Page v. Torrey*, 201 F.3d 1136 (9th Cir. 2000). Even if exhaustion applied, it would be futile because the constitutional violations alleged herein result from official CDCR policy—specifically, the fabricated eligibility criterion, the blanket acceptance of

HOPE's arbitrary treatment determinations, and the systematic failure to provide notice and CTM documentation. CDCR's own policies (confirmed under oath in *Dwyer*) establish that no internal remedy could grant Plaintiff treatment completion or procedural compliance.

PARTIES

Plaintiff

11. Plaintiff BRENDAN NGEHSI NEWANFORBI ("Plaintiff" or "Mr. Newanforbi") is an adult resident of San Joaquin County, California, currently on parole supervision under the jurisdiction of the California Department of Corrections and Rehabilitation, Division of Adult Parole Operations, assigned CDCR Number BF3571.

Entity Defendant (State Actor)

12. Defendant HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, is a CASOMB-certified sex offender treatment provider that contracts with CDCR to provide mandatory treatment services under Penal Code § 3008(d). HOPE Psychotherapy, Inc. functions as a state actor under 42 U.S.C. § 1983 because it performs a traditional public function delegated by the state, operates under CDCR's supervision and contractual authority, and jointly participates with state officials in making liberty-affecting determinations. See *West v. Atkins*, 487 U.S. 42 (1988); *Lugar v. Edmondson Oil Co.*, 457 U.S. 922 (1982). HOPE Psychotherapy, Inc. is sued for injunctive and declaratory relief to reform its unconstitutional treatment practices.

13. HOPE Psychotherapy, Inc. satisfies multiple tests for state action under Section 1983: (a) Public function test: HOPE performs functions that have been traditionally and exclusively performed by the state—specifically, making determinations about treatment completion that directly affect liberty through parole supervision. These determinations are not merely recommendations; they are incorporated wholesale into CDCR's discharge decisions. (b) Joint action test: HOPE and CDCR jointly participate in the deprivation of Plaintiff's liberty. CDCR parole agents and administrators treat HOPE's "completion" and phase status determinations as dispositive predicates in discharge reviews and supervision decisions, and HOPE makes those determinations in coordination with parole at Containment Team Meetings. HOPE's "non-completion" determination was the stated basis for Plaintiff's continued supervision. CDCR did not independently evaluate Plaintiff's treatment progress—it simply adopted HOPE's characterization. (c) Symbiotic relationship test: HOPE exists as a CASOMB-certified provider solely to serve CDCR's statutory mandate under Penal Code § 3008(d). HOPE's revenue depends entirely on CDCR referrals. CDCR's regulatory authority over HOPE creates a relationship of interdependence that makes HOPE's conduct fairly attributable to the state.

14. HOPE Psychotherapy, Inc. maintained an official policy, custom, and practice of refusing to certify "completion" for any parolee prior to discharge from parole, regardless of clinical progress. This policy was admitted under oath by HOPE's Executive Director of Clinical Training in *In re Dwyer*, who testified that HOPE's "aftercare" phase is "mandatory for those who have not yet discharged from parole" and that HOPE "believes a continuous connection to treatment is required for all sex offender parolees." *In re Dwyer*, slip op. at 10-11. HOPE's failure to establish written completion criteria is not an omission but a deliberate policy choice designed to maximize billable "maintenance" phases. This "retention-by-default" policy was the moving force behind the violation of Plaintiff's rights, as it ensured his "non-completion" status was predetermined, not based on individual assessment. See *Monell v. Department of Social Services*, 436 U.S. 658, 694 (1978).

Individual-Capacity Defendants (Damages)

15. Defendant KATIE PALACIOS is the Director of the HOPE Program – Stockton, employed by HOPE Psychotherapy, Inc. Director Palacios exercises supervisory authority over HOPE's phase definitions, titration criteria, module completion standards, and treatment completion determinations.

Under Director Palacios's leadership, HOPE operates an arbitrary treatment system with no standardized completion criteria—the same system a California Superior Court found "vitiates the Legislature's directive" under Penal Code § 3008(d)(2). Director Palacios is sued in her individual capacity for damages arising from her control over the treatment determinations that were incorporated into Plaintiff's discharge review without due process safeguards.

Official-Capacity Defendants (Systemic Reform)

16. Defendant JEFF MACOMBER is the Secretary of the California Department of Corrections and Rehabilitation, the chief executive officer with ultimate authority over departmental policies and practices, including parole discharge procedures. Secretary Macomber is sued in his official capacity only for prospective injunctive and declaratory relief pursuant to *Ex parte Young*, 209 U.S. 123 (1908).

17. Defendant BRYAN BISHOP is the Director of the Division of Adult Parole Operations, the entity that conducted Plaintiff's defective discharge review. Director Bishop has authority to implement and enforce policies governing parole discharge procedures. Director Bishop is sued in his official capacity only for prospective injunctive and declaratory relief.

Individual-Capacity Defendants (Damages) – Continued

18. Defendant KEELY DODD (Badge #6462) is the Parole Administrator who made the final decision denying Plaintiff's discharge from parole on November 19, 2025. The facial defects in the 1502-DR were apparent at the time of her approval. Administrator Dodd possessed final, unreviewable authority over Plaintiff's discharge review—the final administrative act with no further administrative remedy available. Administrator Dodd made the final decision applying the unconstitutional blanket policy of indefinite retention and ratifying the fabricated eligibility rule consistent with that policy. As final decision-maker, Dodd knew from CDCR training and *Dwyer/Macomber* rulings that § 3574 requires independent treatment/discharge decisions, yet ratified the unlawful linkage. Administrator Dodd is sued in her individual capacity for damages.

19. Defendant LONG MOUA (Badge #7472) is a Parole Agent employed by the California Department of Corrections and Rehabilitation, Division of Adult Parole Operations. Agent Moua authored the CDCR 1502-DR Discharge Review Report dated November 12, 2025, which forms the basis of this action. Agent Moua is sued in his individual capacity for damages arising from his personal participation in the constitutional violations alleged herein.

20. Defendant GARY NOGUCHI (Badge #7284) is a Unit Supervisor employed by CDCR/DAPO. Supervisor Noguchi reviewed, ratified, and approved the defective Discharge Review Report on November 14, 2025. The defects—including the missing totals/scoring band, the fabricated "10-year term" eligibility statement, and the blank service checkbox—were apparent on the face of the 1502-DR at the time of his review. Given his rank as Unit Supervisor, Defendant Noguchi is charged with constructive knowledge of the lawful discharge criteria under Penal Code § 3001. His ratification of a "10-year parole term" exclusion—a rule that appears in no statute or regulation—demonstrates legally unreasonable conduct that no competent official in his position would have undertaken. Supervisor Noguchi had authority to identify and correct procedural defects but instead affirmed the unconstitutional decision. Supervisor Noguchi is sued in his individual capacity for damages.

21. Defendant A. DERRICK (Badge #6910) is a Parole Agent employed by CDCR/DAPO who served as Agent of Record during the relevant review period. Agent Derrick had direct responsibility for: (a) initiating timely Containment Team Meetings in compliance with Title 15 CCR § 3574; (b) ensuring CDCR Form 3043 was completed and provided to Plaintiff within 30 days of each CTM; (c) maintaining accurate case documentation; and (d) providing input into the discharge review process. Agent Derrick failed to initiate CTMs or complete Form 3043, as required by 15 CCR § 3574, directly causing the procedural void. Agent Derrick's failure to perform these mandatory duties directly contributed to the procedural defects in Plaintiff's discharge review. Agent Derrick is sued in his

individual capacity for damages.

22. Defendant JOSEELYN ROJO is a Parole Agent employed by CDCR/DAPO who assumed responsibility as Agent of Record on November 19, 2025—the same day the defective Discharge Review Report was finalized. Agent Rojo had immediate responsibility to ensure proper service of the finalized report to Plaintiff, yet the "Parolee Provided Copy" checkbox remains blank. Agent Rojo withheld the finalized report from Plaintiff, depriving him of any opportunity to challenge the defects. Agent Rojo's failure to provide constitutionally adequate notice perpetuated the due process violation. Agent Rojo is sued in her individual capacity for damages.

23. At all times relevant to this Complaint, each individual Defendant acted under color of state law within the meaning of 42 U.S.C. § 1983. Each Defendant's actions were pursuant to CDCR's official policy or longstanding custom of indefinite retention, as evidenced by the judicial findings in *Dwyer* and *Macomber*, establishing *Monell* liability.

24. CDCR's custom of accepting HOPE's non-completion determinations without independent review, despite § 3574 safeguards requiring separation of treatment and discharge decisions, establishes entity liability under *Monell*, as it was the moving force behind Plaintiff's deprivation.

FACTUAL ALLEGATIONS

Plaintiff's Parole Status

25. Plaintiff was released to parole supervision on December 2, 2020, with a Controlling Discharge Date of December 2, 2030 (a 10-year parole term). Plaintiff is required to register pursuant to Penal Code sections 290 to 290.023 and participates in the Sex Offender Management Program ("SOMP") as mandated by Penal Code section 3008(d).

26. Plaintiff is supervised by the Stockton 2 GPS Parole Unit in Region N. His current supervision category is "SA" (Sex Offender Active) with a CSRA Score of 2 (Moderate).

27. As of the Discharge Review dated November 12, 2025, Plaintiff had completed more than five (5) years of his parole term—well beyond the one-year minimum period after which California law requires a lawful discharge review supported by good-cause findings if parole is to be continued.

California's Structured Parole Discharge Framework

28. California has established a structured framework for parole discharge decisions through statutes and regulations that create mandatory criteria and procedural requirements.

29. California Penal Code § 3001(a)(2) provides that persons required to register under Penal Code section 290, who have been on parole continuously for at least one year, "shall be discharged" from parole unless the department recommends retention and the Board of Parole Hearings finds "good cause" to retain the person. This statute's mandatory language ("shall"), coupled with specific substantive predicates (one year of continuous parole, absence of a department recommendation for retention, absence of a BPH good-cause finding), creates a protected liberty interest in receiving the procedures that guard against arbitrary denial of that discharge. *Board of Pardons v. Allen*, 482 U.S. 369, 376-78 (1987) (mandatory language creates entitlement); *Greenholtz v. Inmates of Nebraska Penal Complex*, 442 U.S. 1, 12 (1979) (statutory structure that requires release upon certain findings creates liberty interest).

30. Title 15, California Code of Regulations, Section 3574 ("Sex Offender Treatment"), effective April 17, 2025, codifies and confirms longstanding procedural safeguards that pre-date its effective date and are independently required by the Fourteenth Amendment, including: (a) Containment Team Meetings ("CTMs") at specified intervals to review treatment progress and determine program completion; (b) Written "good cause" findings when retaining a participant in treatment, signed by both treatment

provider and parole agent on CDCR Form 3043; (c) Delivery of completed Form 3043 to the supervised person within 30 calendar days of the CTM; (d) Separation of treatment completion from parole discharge as "legally separate decisions." Critically, Section 3574(f)(1) expressly mandates: "Treatment completion and parole discharge are legally separate decisions." This regulatory language prohibits the very linkage Defendants employ to trap Plaintiff in perpetual treatment.

31. CDCR Form 1502-DR ("Discharge Review Report") implements a structured scoring system with six objectives, each rated on a 1-3 scale (with some objectives including a fourth option). The form explicitly provides scoring bands that determine recommended outcomes: Total Score 6-7: "Reduction May be Warranted"; Total Score 8-12: "No Change Warranted"; Total Score 13-19: "Increase May be Warranted."

32. This regulatory and statutory framework creates a constitutionally protected liberty interest in the procedural integrity of the discharge review. The interest is not in a particular outcome, but in a decision untainted by arbitrariness, fabrication, or structural impossibility. See *Hicks v. Oklahoma*, 447 U.S. 343, 346 (1980) (due process violated when mandatory sentencing guidelines are ignored); *Walker v. Gomez*, 370 F.3d 969, 974 (9th Cir. 2004). California has created a substantive right to a particular process; its arbitrary denial is a constitutional injury.

33. Furthermore, the classification of Plaintiff as "non-compliant" or "incomplete" in sex offender treatment constitutes a distinct stigma that, when combined with the deprivation of discharge eligibility (a state-created right), satisfies the "stigma-plus" test of *Paul v. Davis*, 424 U.S. 693 (1976). This reputational harm, coupled with the tangible burden of extended supervision, creates a liberty interest independent of the parole statute itself.

34. This mandatory framework creates constitutionally protected liberty interests in the procedures governing parole discharge decisions. When California establishes structured decision criteria with defined outcomes, it cannot arbitrarily disregard them. See *Hicks v. Oklahoma*, 447 U.S. 343 (1980); *Toussaint v. McCarthy*, 801 F.2d 1080 (9th Cir. 1986) (when regulations create substantive limits on official discretion, due process requires compliance).

SYSTEMIC AND POLICY-DRIVEN VIOLATIONS

35. This case challenges a statewide policy and entrenched practice, not a discretionary error. As documented in *Dwyer* and *Macomber*, CDCR and HOPE operate under an unwritten but uniformly applied policy that treatment cannot be completed prior to parole discharge, vitiating legislative intent and creating a system of indefinite supervision. This is a *Monell* custom, as *Dwyer/Macomber* evidence uniform application across parolees, not isolated errors.

36. Penal Code § 3008(d)(2) mandates that sex offender parolees "shall successfully complete a sex offender management program" as a condition of parole. Critically, the Legislature specified: "The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court." This language requires individualized assessment, discretion, and a real possibility of completion—not mandatory retention for all parolees for the entire parole term.

37. Despite this clear statutory mandate, CDCR and its contracted treatment providers—including HOPE Psychotherapy, Inc.—operate a system where completion prior to parole discharge is functionally impossible. This policy was judicially condemned in *In re Frederick Dwyer*, No. SC-080355A (San Mateo Super. Ct. Mar. 20, 2023), where CDCR officials testified under oath that it is departmental policy that "a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge from parole." A true and correct copy of the *Dwyer* order is attached hereto as Exhibit B.

38. The *Dwyer* court made devastating findings about HOPE's practices. The court found that HOPE's Executive Director of Clinical Training testified that HOPE's "aftercare" phase is "mandatory for those who have not yet discharged from parole based on the need to maintain a connection to treatment," and that HOPE "believes a continuous connection to treatment is required for all sex offender parolees." The court concluded: "Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully 'complete' a sex offender management treatment program short of being discharged from parole. The discretion conferred by statute on the Division of Adult Parole Operations and this CASOMB provider is apparently being exercised in all cases to require participation in a sex offender management program for the entire term of parole, apparently without reference to the individualized performance of each parolee. Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and 'up to' the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole." *In re Dwyer*, slip op. at 10-11 (emphasis added).

39. The systemic nature of CDCR's unlawful practices was further documented in *Alliance for Constitutional Sex Offense Laws v. Macomber*, No. 23STCP02378 (L.A. Super. Ct.), filed in July 2023. The court overruled CDCR's demurrer on December 13, 2023, finding that the petitioners stated valid causes of action for mandate and declaratory relief—including that CDCR's blanket retention policy contradicts the statutory requirement for individualized discretion. A true and correct copy of the *Macomber* demurrer order is attached hereto as Exhibit C. The *Macomber* litigation resulted in the April 2025 amendments to Title 15 CCR § 3574—yet CDCR and HOPE continue operating the same unconstitutional system.

40. CDCR has a documented history of ignoring judicial rulings condemning its parole practices. The fact that California had to be sued (in *ACSOL v. Macomber*) to implement a mandatory "completion review" mechanism confirms that the prior system lacked adequate discharge procedures. The *Macomber* settlement forced CDCR to amend regulations (NCR 25-01, January 2025) requiring formal assessment for discharge eligibility—tacit admission that the previous contractual and regulatory environment failed to facilitate timely discharge.

41. As a direct result of the policies and practices described above, Plaintiff is subject to a system that provides no meaningful, ascertainable path to program completion or parole discharge prior to his controlling discharge date in 2030. The absence of such a path transforms his finite, 10-year parole term into an indefinite deprivation of liberty.

The Financial Architecture of Indefinite Retention

42. The indefinite treatment retention system is reinforced by a payment structure that creates direct financial incentives for prolonged enrollment and no financial reward for successful completion. HOPE Psychotherapy, Inc. operates under a fee-for-service model where revenue is directly tied to the volume of "active" participants and the frequency of billable services. According to Alameda County Board of Supervisors Contract No. 901843/27270, approved July 13, 2021, HOPE bills the following rates:

- $85.00 per Group Session (90 minutes);
- $85.00 per Containment Team Meeting ("CTM") (per client staffed);
- $150.00 per Individual Session;
- $600.00 per Polygraph Examination.

This billing structure means that every client discharge terminates a recurring revenue stream. A single parolee attending two group sessions per week (approximately 104 group sessions annually) and two Containment Team Meetings per year—each CTM billed at $85 per client staffed for five CTM participants—generates approximately $9,690 annually in group and CTM fees alone, revenue that evaporates upon discharge. HOPE's admitted policy of requiring a "continuous connection to treatment" for all parolees is therefore not merely a clinical philosophy but a business model.

43. CDCR's budget for sex offender management contract services is explicitly calculated based on "Average Daily Population" ("ADP") multiplied by average bid rates. The FY 2024–25 Budget Change Proposal documents a total fund allocation of approximately $26 million based on ADP. The same Budget Change Proposal reveals substantial rate increases for key billable events, including intake reports (approximately $806, increased from $442—an 82% increase), annual assessments (approximately $766, increased from $318—a 141% increase), annual per-capita high-risk supervision (approximately $13,473), and annual per-capita non-high-risk supervision (approximately $10,292). This ADP-based funding model creates institutional incentives to maintain high caseloads: if the supervised population decreases through discharges, the funding justification decreases proportionally. A parolee who completes treatment in one year generates one year of assessment fees; a parolee who remains in treatment for ten years generates ten years of assessment fees—a difference of approximately $6,894 in assessment revenue alone, plus thousands more in ongoing group session and CTM billings.

44. The resulting financial conflict is stark. HOPE Psychotherapy, Inc. controls the "completion" determination that directly triggers parole discharge eligibility through CTMs and discharge review inputs incorporated wholesale into CDCR Form 1502-DR, yet every discharge reduces both HOPE's billable caseload and CDCR's ADP-based budget allocation. There is no documented "success bonus" for treatment completion—only ongoing per-session, per-client, and per-CTM revenue that terminates upon discharge. Alameda County's AB 109 contracts further confirm this revenue dependence: HOPE is part of a $2.2 million pooled vendor allocation (Contract Term: August 1, 2024 – July 31, 2027) shared with two other providers. The adjudication of Plaintiff's "completion" status by a private entity exercising delegated, quasi-judicial authority over liberty-affecting determinations—while possessing a direct financial stake in continued retention—violates the impartial tribunal requirement of the Due Process Clause. See Tumey v. Ohio, 273 U.S. 510, 532 (1927) (due process violated where an institutional arrangement "offers a possible temptation to the average man as a judge…not to hold the balance nice, clear and true"); see also Caperton v. A.T. Massey Coal Co., 556 U.S. 868, 878 (2009) (due process violated where there is a constitutionally intolerable probability of bias). Due process is violated not only where an adjudicator is actually biased, but where the institutional structure itself offers a possible temptation to decide cases in a way that advances financial interests. No amount of discretionary good faith by individual officers can cure this conflict, because the financial incentives operate ex ante and system-wide.

Plaintiff's Experience in the HOPE Program

45. Plaintiff has participated in CDCR's Sex Offender Management Program via the HOPE Program for over five (5) years and two (2) months since his release on December 2, 2020. During this time, Plaintiff has been subjected to arbitrary and standardless practices that mirror those condemned in *Dwyer* and challenged in *Macomber*.

46. HOPE's treatment structure includes mandatory phase repetitions with no regulatory basis. Participants are required to complete "Core" phase twice, "Maintenance" phase twice, and then "titration" before being considered for program completion—a framework that appears nowhere in Penal Code § 3008(d) or Title 15 CCR § 3574. This arbitrary phase-looping system results in participants remaining in treatment for 5-7+ years with no meaningful prospect of completion, regardless of their compliance, risk scores, or treatment progress.

47. HOPE's unpublished, internally contradictory criteria for "phase progression," "titration," and "completion" are so standardless that they vest HOPE officials with unbridled discretion to prolong treatment indefinitely. This lack of objective, knowable standards violates the Due Process Clause's prohibition on vague regulations that delegate basic policy matters to officials for resolution on an ad hoc and subjective basis. *Kolender v. Lawson*, 461 U.S. 352, 357-58 (1983); *Giaccio v. Pennsylvania*, 382 U.S. 399, 402-03 (1966). A parolee cannot meaningfully challenge a "non-completion" determination when the criteria for "completion" are unknowable.

48. Director Palacios has admitted that homework assignments are "routinely lost" within the HOPE Program. Participants are forced to restart phases due to staff turnover or job-related group changes, forfeiting progress they had previously earned. These practices introduce fundamental unreliability into treatment determinations, yet Parole Defendants cite HOPE's "non-completion" status as a factual basis for denying discharge.

49. During Plaintiff's parole term, Containment Team Meetings (CTMs) were held approximately twice per year—approximately ten (10) CTMs over five years and two months. At each CTM, five individuals were present, and CDCR Form 3043—the official Containment Model record documenting risk, treatment status, and supervision determinations—was completed by parole staff and treatment providers.

50. Despite the Form 3043s being completed at each CTM, none of these documents were provided to Plaintiff through any regular or automatic procedure. Plaintiff only obtained copies by physically going to the parole office and requesting them. Despite this lack of disclosure, the determinations recorded in those CTMs and on the Form 3043s were used to justify continued treatment, increased supervision, and the denial of his discharge.

51. Defendant Palacios and HOPE Psychotherapy, Inc. have failed to provide Plaintiff with any written criteria for program completion, any appeal process for titration decisions, or any mechanism to challenge lost homework or forced phase restarts—depriving him of notice and opportunity to be heard on the very determinations that affect his liberty.

The Defective Discharge Review Report

52. On or about November 12, 2025, Defendant Moua prepared CDCR Form 1502-DR Discharge Review Report for Plaintiff. The report was subsequently reviewed and approved by Defendant Noguchi (November 14, 2025) and Defendant Dodd (November 19, 2025). A true and correct copy of the CDCR Form 1502-DR Discharge Review Report is attached hereto as Exhibit A and incorporated herein by reference.

53. The Discharge Review Report contains the following procedural and factual defects that violate Plaintiff's constitutional right to due process:

DEFECT 1: Arbitrary Scoring Without Aggregation or Explanation

54. The Discharge Review Report assigns numerical scores to each of six objectives: Objective 1 (Residence Stability): Rated 1 (best possible score); Objective 2 (Structured Time): Rated 3; Objective 3 (Compliance): Rated 3; Objective 4 (Programming): Rated 3; Objective 5 (Pro-social Affiliations): Rated 2; Objective 6 (Sex Offender Treatment): Rated 2.

55. Despite assigning individual scores, the report never totals these scores, never identifies the applicable scoring band, and never explains how the scores connect to the ultimate recommendation. The report simply jumps to the conclusion: "Retain on Parole."

56. Based on the assigned scores (1+3+3+3+2+2 = 14), Plaintiff's total score falls within the "13-19: Increase May be Warranted" band. Yet, the report arbitrarily recommends retention—a lesser restriction—without explanation. This systematic disregard of mandatory state criteria was so total and unexplained that it constitutes an arbitrary and capricious deprivation of liberty in violation of the Fourteenth Amendment, not merely a violation of state regulation. See *Hicks v. Oklahoma*, 447 U.S. 343 (1980).

DEFECT 2: Reliance on Internally Contradictory and Materially False Facts

57. The Discharge Review Report contains a fatal internal contradiction regarding Plaintiff's sex offender treatment status: Objective 6 Score: "2 – Attended and partially participated in sex offender treatment." Agent Narrative: "[Plaintiff] has not completed sex offender treatment."

58. "Partial participation" and "non-completion" are mutually exclusive characterizations. Partial participation demonstrates ongoing engagement with the treatment program; non-completion suggests failure or refusal. The report treats partial participation as an aggravating factor, when Title 15 CCR § 3574 explicitly recognizes phase-based treatment progression rather than binary completion.

59. More fundamentally, Plaintiff's "non-completion" status is a manufactured condition. As the *Dwyer* court found, HOPE's policy makes completion prior to parole discharge impossible for all participants. Defendants cannot lawfully cite "non-completion" as a basis for retention when their own policies ensure that completion is structurally impossible.

60. The Supreme Court has long held that due process is violated when liberty-affecting decisions rest on materially false or contradictory information. *Townsend v. Burke*, 334 U.S. 736 (1948) ("careless or designed pronouncement of sentence on a foundation so extensively and materially false … renders the proceedings lacking in due process"). The Ninth Circuit has likewise recognized that even the minimal requirements of due process are violated when decisions rest on unreliable evidence. *Cato v. Rushen*, 824 F.2d 703 (9th Cir. 1987). When the foundational premises of a liberty-affecting decision are facially unreliable, due process is violated regardless of the procedural formality employed.

DEFECT 3: Technical Violations Treated as Substantive Risk Indicators

61. The report lists the following parole violations as justification for retention: 2025-03-04: Failure to attend sex offender treatment (Verbal Reprimand); 2025-06-26: Failure to attend sex offender treatment (Verbal Reprimand); 2025-07-15: Failure to charge GPS device (Verbal Reprimand); 2025-08-18: Failure to properly charge GPS device (Verbal Reprimand).

62. Every listed violation is: (a) non-criminal; (b) resolved with only verbal reprimands—the lowest possible sanction; and (c) not associated with any new law violations or public safety incidents.

63. The report's treatment of these minor administrative violations as indicators of substantive public safety risk creates an irreconcilable logical contradiction: if these violations warranted only verbal reprimands, CDCR itself already determined they were minor. Using them to support serious risk findings contradicts the agency's own prior assessment and lacks the indicia of reliability required by due process. See *Cato v. Rushen*, 824 F.2d 703, 705 (9th Cir. 1987).

DEFECT 4: Application of Nonexistent Eligibility Rule

64. The Discharge Review Report states: "Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term." No such policy exists. The report invents a "10-year term" bar, contradicting § 3001(a)(2)'s one-year eligibility and § 3574(f)(1)'s delinking of treatment from discharge. No CDCR policy (e.g., Policy 19-03) contains any such exclusion. This ultra vires rule is a CDCR custom, as *Dwyer* confirmed blanket retention. Defendants fabricated this eligibility criterion out of whole cloth, in direct violation of Penal Code § 3001(a)(2) and the Due Process Clause.

65. California Penal Code § 3001(a)(2) explicitly provides that sex offenders become eligible for discharge after one year of continuous parole—with no exception based on parole term length. The statute mandates that within 30 days of the one-year mark, "that person shall be discharged from parole" unless CDCR recommends retention and BPH finds "good cause."

66. Neither Penal Code § 3001, nor Title 15 CCR § 3574, nor any other statute or regulation lists parole term length as a "good cause" factor for denying discharge. Defendants fabricated and applied an ultra vires eligibility criterion that has no basis in law and contradicts the mandatory discharge language of Penal Code § 3001(a)(2).

67. Decisions affecting liberty must be based on established criteria, not ad hoc fabrications. *Carey v. Piphus*, 435 U.S. 247, 266 (1978). The Supreme Court's decision in *Hicks v. Oklahoma* clearly established that when a State grants a benefit through a structured scheme with defined criteria, officials may not arbitrarily disregard those criteria. 447 U.S. at 346. Inventing an eligibility rule that appears in no statute, regulation, or published policy—and that directly contradicts the plain language of Penal Code § 3001(a)(2)—is the epitome of the arbitrary disregard *Hicks* forbids. No reasonable parole official could believe that creating a binding rule out of whole cloth constitutes a lawful "discretionary" act. See also *United States v. Washington*, 869 F.3d 193, 219 (3d Cir. 2017) ("[A]dding requirements not found in the statute or regulations is arbitrary and capricious.").

DEFECT 5: Failure to Weigh Acknowledged Mitigating Evidence

68. The report explicitly acknowledges favorable evidence: Objective 1: Stable residence with family (scored 1, the best possible); Mental Health: CCCMS compliant; Supervisor Narrative: "The subject should be commended for maintaining compliance with parole supervision."

69. Despite acknowledging these mitigating factors, the report assigns them no mitigating weight in the ultimate decision. Under *Morrissey v. Brewer*, 408 U.S. 471, 488 (1972), a parolee "must have an opportunity to be heard and to show, if he can, that ... circumstances in mitigation suggest that the violation does not warrant" adverse action. One-sided consideration that acknowledges but ignores favorable evidence renders the discharge review procedurally meaningless.

DEFECT 6: Missing Mandatory Procedural Safeguards

70. Title 15 CCR § 3574(f) requires that when retaining a participant in sex offender treatment: (1) The determination must be supported by "good cause" as defined in Section 3000; (2) The determination must be stated in writing; (3) The determination must be signed by the sex offender treatment provider AND parole agent on CDCR Form 3043; (4) The completed form must be delivered to the supervised person within 30 calendar days of the Containment Team Meeting.

71. The Discharge Review Report lacks: Any Containment Team Meeting findings; CDCR Form 3043 (Containment Team Meeting / Earned Discharge Consideration Committee); Any written "good cause" retention finding as required by regulation.

72. "Notice of the factual basis for a decision and a fair opportunity for rebuttal are among the most important procedural mechanisms for purposes of avoiding erroneous deprivations." *Wilkinson v.*

Austin, 545 U.S. 209, 226 (2005). The absence of mandatory CTM documentation and written good-cause findings deprived Plaintiff of the ability to understand, contest, or meaningfully respond to the basis for continued supervision.

DEFECT 7: Failure to Provide Notice

73. Page 5 of the Discharge Review Report contains checkboxes for "Parolee Provided Copy (Date)" with options for "Mailed By (Initials)" and "Delivered By (Initials)." Both checkboxes are blank.

74. "An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action." *Mullane v. Central Hanover Bank*, 339 U.S. 306, 314 (1950). "[W]hen notice is a person's due, process which is a mere gesture is not due process." *Id.* at 315. This principle has been black-letter law for 75 years.

75. For a parolee under active supervision—whose whereabouts are known to the supervising agency—failure to provide direct notice of an adverse discharge decision is constitutionally inadequate. Defendants supervised Plaintiff at a known address, possessed his contact information, and had an affirmative obligation to notify him of adverse decisions affecting his liberty. The blank "Parolee Provided Copy" checkbox demonstrates actual failure, not inadvertent omission. Without notice, Plaintiff was denied any meaningful opportunity to challenge factual errors, present rebuttal evidence, or seek administrative correction before the deprivation continued.

DEFECT 8: Unconstitutional Delegation to HOPE's Arbitrary Treatment System

76. The Discharge Review Report relies on HOPE's characterization of Plaintiff as having "not completed" treatment. But HOPE operates a system where completion is structurally impossible—the same system the *Dwyer* court found vitiates the Legislature's directive.

77. CDCR's policy of uncritically adopting HOPE's determinations, made pursuant to HOPE's standard operating procedures that preclude completion, constitutes an unconstitutional delegation and a systemic denial of due process. CDCR cannot constitutionally outsource a core liberty decision to a private entity without due process safeguards, including notice, rebuttal, and reliable criteria. See *Carter v. Carter Coal Co.*, 298 U.S. 238 (1936). HOPE's determinations are made without: (a) Standardized completion criteria published in regulation; (b) Individualized risk-based assessments tied to completion; (c) CTM documentation with good-cause findings; (d) Any administrative appeal process.

78. This delegation creates a system where two identically-situated parolees—same risk scores, same compliance, same time served—can receive completely different outcomes based solely on HOPE's arbitrary internal practices. This is precisely the kind of arbitrary deprivation that the Due Process Clause prohibits. *Wolff v. McDonnell*, 418 U.S. 539 (1974); *Hicks v. Oklahoma*, 447 U.S. 343 (1980).

79. By incorporating HOPE's "non-completion" status into the Discharge Review without independent verification or due process protections, Defendants imported HOPE's constitutional defects into their own decision-making process. The result is a system of indefinite supervision with no lawful exit mechanism—exactly what *Morrissey*, *Greenholtz*, and *Wilkinson* forbid.

Mathews v. Eldridge Balancing

80. Under *Mathews v. Eldridge*, 424 U.S. 319 (1976), this case presents a textbook example of inadequate procedural safeguards: (a) Private Interest: The private interest here—freedom from extended custodial supervision including GPS monitoring, movement restrictions, employment limitations, and mandatory treatment attendance—is profound. (b) Risk of Erroneous Deprivation: The risk of erroneous deprivation under the current system, which lacks notice, rebuttal, accurate fact-finding, and standardized criteria, is exceptionally high. The contradictory factual premises,

fabricated eligibility rules, and structural impossibility of treatment completion virtually guarantee erroneous outcomes. (c) Government Interest: The government's interest in public safety is not served by, and is outweighed by, the burden of providing the basic procedures sought here (e.g., accurate scoring, truthful facts, non-arbitrary criteria). The procedural safeguards Plaintiff seeks—score aggregation, CTM documentation, written good-cause findings, and notice—are already required by CDCR's own regulations; compliance imposes no additional burden.

CLAIMS FOR RELIEF

COUNT I: VIOLATION OF PROCEDURAL DUE PROCESS (Fourteenth Amendment)

Against All Individual Defendants in Individual Capacity

81. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

82. California's structured parole discharge framework—including Penal Code § 3001, Title 15 CCR § 3574, and the CDCR 1502-DR scoring system—creates constitutionally protected liberty interests in the procedures governing parole discharge decisions, including: (a) accurate, non-arbitrary parole discharge decisions; (b) freedom from extended supervision absent constitutional procedures; and (c) fair risk classification based on reliable information.

83. Defendants deprived Plaintiff of these liberty interests without constitutionally adequate procedures by: (a) Ignoring mandatory scoring criteria and failing to aggregate or explain objective scores; (b) Relying on internally contradictory and materially false factual premises; (c) Treating minor technical violations as substantive risk indicators; (d) Applying a fabricated eligibility criterion with no basis in law; (e) Failing to weigh acknowledged mitigating evidence; (f) Omitting mandatory CTM documentation and Form 3043; (g) Failing to provide constitutionally adequate notice of the adverse decision; (h) Unconstitutionally delegating liberty-affecting determinations to HOPE's arbitrary treatment system.

84. Each Defendant personally participated in these constitutional violations:

Defendant Moua authored the defective report, assigned scores without aggregation, included contradictory characterizations, cited the nonexistent 10-year eligibility bar, and failed to attach required documentation. Agent Moua knowingly omitted mandatory scoring under 15 CCR § 3574 and cited a non-existent rule that appears in no CDCR training manual, regulation, or statute.

Defendant Noguchi reviewed and ratified the defective report despite facial defects. He personally reviewed the Report, saw the facial contradiction between "partial participation" and "non-completion," and saw the citation to the non-existent "10-year rule." By approving a report with facial legal impossibilities, he acquiesced in the constitutional violation. Given his rank as Unit Supervisor, he is charged with constructive knowledge of lawful discharge criteria.

Defendant Dodd made the final decision approving the unconstitutional process despite having authority to correct or remand. The facial defects were apparent at the time of her approval. As final decision-maker, she knew from CDCR training and *Dwyer/Macomber* rulings that § 3574 requires independent treatment/discharge decisions, yet ratified the unlawful linkage.

Defendant Derrick served as Agent of Record during the review period and failed to initiate CTMs or complete Form 3043, as required by 15 CCR § 3574, directly causing the procedural void.

Defendant Rojo assumed responsibility as Agent of Record and withheld the finalized report from Plaintiff, depriving him of any opportunity to challenge the defects.

Defendant Palacios oversees the HOPE Program's arbitrary phase definitions, titration criteria, and completion standards that make treatment completion structurally impossible, and whose defective determinations were incorporated into Plaintiff's discharge review without due process safeguards.

85. Defendants are not entitled to qualified immunity. The constitutional violations alleged herein were clearly established under binding precedent that reasonable officials would have known:

(a) Fabricated eligibility criteria: The Supreme Court's decision in *Hicks v. Oklahoma* clearly established that when a State grants a benefit through a structured scheme with defined criteria, officials may not arbitrarily disregard those criteria. 447 U.S. at 346. Inventing an eligibility rule that appears in no statute, regulation, or published policy—and that directly contradicts the plain language of Penal Code § 3001(a)(2)—is the epitome of the arbitrary disregard *Hicks* forbids. No reasonable parole official could believe that creating a binding rule out of whole cloth constitutes a lawful "discretionary" act. *Walker v. Gomez*, 370 F.3d 969, 974 (9th Cir. 2004) ("[A]ward of good time credits cannot be denied arbitrarily."). See also *United States v. Washington*, 869 F.3d 193, 219 (3d Cir. 2017).

(b) Reliance on contradictory facts: *Townsend v. Burke*, 334 U.S. 736 (1948), and *Cato v. Rushen*, 824 F.2d 703 (9th Cir. 1987), clearly establish that liberty-affecting decisions based on materially false or unreliable information violate due process. When a single document characterizes Plaintiff as both "partially participating" and "not completing" treatment, a reasonable official would recognize this as the type of "careless or designed" error condemned in *Townsend*.

(c) Notice failure: *Mullane v. Central Hanover Bank*, 339 U.S. 306 (1950), has been black-letter law for 75 years. Defendants supervised Plaintiff at a known address, possessed his contact information, and had an affirmative obligation to notify him of adverse decisions affecting his liberty. The blank "Parolee Provided Copy" checkbox demonstrates actual failure, not inadvertent omission.

(d) Post-Dwyer knowledge: By March 2023, every CDCR official and HOPE employee had constructive notice that indefinite treatment retention "vitiates the Legislature's directive." Defendants Moua, Noguchi, and Dodd prepared Plaintiff's discharge review in November 2025—two and a half years after *Dwyer*—yet applied the same condemned practices. Post-*Dwyer* conduct eliminates any good-faith defense.

86. Even apart from parole-specific precedent, it was clearly established by 2025 that (1) officials may not rely on materially false information in a liberty-affecting decision; (2) officials may not fabricate eligibility criteria that do not exist in law; and (3) officials must provide notice reasonably calculated to apprise the affected person of an adverse decision. These are "obvious case" constitutional violations under *Hope v. Pelzer*, 536 U.S. 730, 741 (2002), and *Taylor v. Riojas*, 592 U.S. 7, 9-10 (2020), where qualified immunity fails even without precedent directly on point because the violation is "obvious." These violations are obvious as no reasonable official post-*Dwyer*/*Macomber* and § 3574 amendments could believe fabricating rules or withholding notice complies with due process. See also *Thornton v. Brown*, 757 F.3d 834 (9th Cir. 2013) (due process in parole conditions); *Hydrick v. Hunter*, 500 F.3d 978 (9th Cir. 2007) (process for sex offender commitments).

87. Defendants' conduct was not a "mistake of judgment" but a deliberate bypass of the mandatory discharge procedures set forth in Penal Code § 3001. No reasonable officer, especially after the judicial findings in *In re Dwyer* and the demurrer overruling in *Macomber*, could believe that inventing a 10-year eligibility bar was a lawful exercise of discretion. Defendants knew or should have known that their actions violated clearly established law.

88. As a direct and proximate result of Defendants' violations, Plaintiff has suffered and continues to suffer: continued parole supervision and ongoing GPS monitoring; restrictions on movement, employment, and association; emotional distress including anxiety, humiliation, and stigma; and other damages to be proven at trial.

COUNT II: INJUNCTIVE AND DECLARATORY RELIEF

Against Defendants HOPE Psychotherapy Inc., Palacios, Secretary Macomber, and Director Bishop in Official Capacity

89. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

90. The Eleventh Amendment does not bar prospective injunctive relief against state officials in their official capacity. *Ex parte Young*, 209 U.S. 123 (1908). "State prisoners may bring a § 1983 action for declaratory and injunctive relief challenging the constitutionality of state parole procedures." *Wilkinson v. Dotson*, 544 U.S. 74, 82 (2005).

91. Defendants HOPE Psychotherapy, Inc., Palacios, Secretary Macomber, and Director Bishop are responsible for the policies and practices governing parole discharge reviews and SOMP administration. They have authority to provide the injunctive relief sought herein.

92. Plaintiff seeks:

(a) A declaration that the Discharge Review Report dated November 12, 2025, violated Plaintiff's procedural due process rights under the Fourteenth Amendment;

(b) A declaration that the "10-year parole term" eligibility criterion is unconstitutional, ultra vires, and has no basis in Penal Code § 3001(a)(2);

(c) A declaration that HOPE's treatment practices—including mandatory phase repetitions, arbitrary titration, routine homework losses, forced restarts due to staff turnover or group changes, and policies making completion structurally impossible prior to discharge—violate Penal Code § 3008(d)(2) and the Fourteenth Amendment's due process requirements;

(d) A declaration that CDCR's reliance on HOPE's arbitrary determinations and unconstitutional delegation of liberty-affecting decisions without safeguards violates the Fourteenth Amendment, Title 15 CCR § 3574(f)(1)'s mandate that "[t]reatment completion and parole discharge are legally separate decisions," and fundamental non-delegation principles;

(e) A declaration that the payment structures documented in HOPE's contracts and CDCR's ADP-based budget allocations create structural conflicts of interest that compromise the impartial tribunal requirement of the Due Process Clause;

(f) A declaration that CDCR's failure to conduct required CTMs, provide Form 3043 with good-cause findings, or allow rebuttal opportunities deprives parolees of due process under *Morrissey v. Brewer*, 408 U.S. 471 (1972) and *Wilkinson v. Austin*, 545 U.S. 209 (2005);

(g) An injunction requiring Defendants to conduct a constitutionally adequate discharge review for Plaintiff within 30 days, using constitutionally adequate procedures (including CTM documentation, accurate scoring, and notice), without predetermining the outcome of that review, said review to include: (i) a Containment Team Meeting where Plaintiff may be heard and present evidence; (ii) a bona fide, individualized assessment of his eligibility for treatment completion that is free from the unconstitutional "retention-by-default" policy and based on individualized clinical metrics; (iii) completion of a CDCR 3043 form with written, fact-specific good-cause findings if retention is recommended; (iv) accurate application and summation of the 1502-DR scoring criteria; and (v) notice and a written statement of reasons for the final decision;

(h) An injunction prohibiting Defendants from relying on the November 2025 Discharge Review Report or any findings derived therefrom, and requiring them to base all future supervision and treatment decisions on the constitutionally adequate review ordered in (g), and to implement the resulting determination consistent with Penal Code § 3001(a)(2) and Title 15 CCR § 3574;

(i) An injunction requiring correction of specific documented factual errors in Plaintiff's parole and treatment records, including: (i) the fabricated "10-year parole term" eligibility exclusion; (ii) the internally contradictory treatment characterizations; and (iii) expungement of references to minor verbal-reprimand violations used as risk indicators;

(j) An injunction prohibiting Defendants from future reliance on fabricated eligibility criteria, arbitrary HOPE practices, or any linkage of treatment completion to parole discharge in violation of § 3574(f)(1), and requiring CDCR to terminate its delegation of treatment completion decisions to HOPE unless and until HOPE adopts standardized, appealable criteria;

(k) An injunction requiring systemic reforms as to Plaintiff to ensure compliance with this Court's order and to prevent his continued subjection to the unconstitutional system, including: (i) Upon Plaintiff's showing that other parolees under HOPE are subject to identical procedural defects using the same forms and policies, an order requiring Defendants to identify all similarly situated parolees and provide them notice of the outcome of this litigation and their right to seek individual review; and (ii) Requiring Defendants Macomber and Bishop to submit, within 90 days, a plan for Court approval demonstrating how CDCR will ensure its discharge reviews and its oversight of contracted providers comply with due process, specifically addressing the prohibition on fabricated criteria, the separation of treatment and discharge decisions, and the provision of notice and documentation;

(l) This Court retaining jurisdiction to enforce these terms and impose sanctions for non-compliance.

COUNT III: STRUCTURAL DUE PROCESS VIOLATION—ABSENCE OF LAWFUL EXIT MECHANISM

Against All Defendants

93. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

94. The combination of CDCR's policies and HOPE's practices creates a parole supervision system with no lawful exit mechanism for sex offender parolees. Treatment completion is structurally impossible under HOPE's admitted policies. Discharge review relies on fabricated eligibility rules. CTM documentation is not provided. Notice is not given. The result is indefinite supervision without any realistic opportunity for discharge—a "Kafkaesque" system where completion is impossible, rules are fabricated, and notice is withheld. Such a system is inherently unconstitutional because it lacks the fundamental fairness required by due process. See *Mathews v. Eldridge*, 424 U.S. 319, 335 (1976) (procedure must provide a "meaningful opportunity" to be heard). The absence of a lawful exit mechanism alone violates due process, independent of any single procedural misstep. Cf. *Zadvydas v. Davis*, 533 U.S. 678, 690 (2001) ("Freedom from imprisonment—from government custody, detention, or other forms of physical restraint—lies at the heart of the liberty that [the Due Process] Clause protects"); *Foucha v. Louisiana*, 504 U.S. 71 (1992).

95. This structural defect does not depend on any individual official's conduct—it is embedded in the policy architecture itself. CDCR has unconstitutionally delegated the core liberty-affecting determination of treatment completion to a private entity (HOPE Psychotherapy, Inc.) without adequate safeguards, standards, or oversight. This delegation violates the Due Process Clause because: (a) HOPE operates without published, standardized criteria for completion; (b) HOPE's internal policies ensure completion is structurally impossible for all participants regardless of individual performance; (c) No administrative review or appeal of HOPE's determinations exists; (d) CDCR incorporates HOPE's arbitrary findings into discharge decisions without independent verification; (e) The payment structure creates financial incentives for HOPE to maintain high caseloads rather than discharge compliant participants.

96. Plaintiff has been trapped in this indefinite system for over five years, with Form 3043s completed at CTMs but never automatically provided to him, no completion criteria, and no lawful exit mechanism. This ongoing deprivation of liberty without due process entitles Plaintiff to declaratory and injunctive relief requiring Defendants to establish constitutional procedures for treatment completion and parole discharge that include a realistic opportunity for completion.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in his favor and against Defendants, and award the following relief:

(A) Nominal damages of $1 against each individual-capacity Defendant for the violation of Plaintiff's constitutional rights;

(B) Compensatory damages against all individual-capacity Defendants in an amount to be proven at trial, including economic damages for lost employment opportunities and treatment program fees, and non-economic damages for emotional distress, anxiety, humiliation, stigma, and restrictions on liberty, movement, and association;

(C) Punitive damages against Defendants Moua, Noguchi, and Dodd, whose personal ratification of the fabricated 10-year rule and continued application of practices judicially condemned in *In re Dwyer* demonstrates reckless indifference to Plaintiff's federally protected rights, in an amount to be determined at trial;

(D) Declaratory relief as set forth in Counts II and III;

(E) Injunctive relief as set forth in Counts II and III;

(F) Reasonable attorney's fees and costs for achieving systemic injunctive relief pursuant to 42 U.S.C. § 1988;

(G) Pre-judgment and post-judgment interest at the maximum legal rate;

(H) Such other and further relief as this Court deems just and proper.

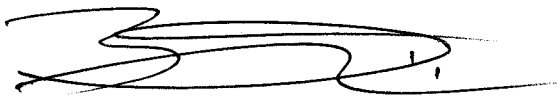
Plaintiff expressly disavows any relief that would necessarily imply the invalidity of the duration of his parole custody unless and until that custody is first invalidated by authorized state proceedings or a federal habeas corpus petition. *Heck v. Humphrey*, 512 U.S. 477 (1994); *Nettles v. Grounds*, 830 F.3d 922 (9th Cir. 2016) (en banc).

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable.

Dated: January 19, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95204
bnn.cdl@gmail.com
(209) 801-4442

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, declare under penalty of perjury under the laws of the United States of America that the foregoing allegations are true and correct to the best of my knowledge, and that Exhibit A is a true and correct copy of the CDCR Form 1502-DR Discharge Review Report as provided to Plaintiff by CDCR, Exhibit B is a true and correct copy of the *In re Dwyer* order, and Exhibit C is a true and correct copy of the *Alliance for Constitutional Sex Offense Laws v. Macomber* demurrer order referenced herein.

Executed on this 19th day of January, 2026.



BRENDAN NGEHSI NEWANFORBI

EXHIBIT A

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

SECTION I PAROLEE PROFILE

Case Type: **PC3000(b)(5)(B)**

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

CSRA Score:	Supervision Category:	Discharge Review Date:	Controlling Discharge Date:
2	**SA**	**12-01-2025**	**12-02-2030**

Commitment Offenses:
PC289(a)(1)(A)[01] Penetration w/Force/Violence/Fear of Immediate Bodily Injury, PC220(a)(1)[01] Assault with Intent to Commit Specific Sex Offense

Imminent Discharge: [X] | DNA Sample Obtained: [X] YES [ ] NO | Non-Controlling Offenses: [X] YES [ ] NO

Commitment Offense Subject To PC 667.5(C): [X] YES [ ] NO | Commitment Offense Subject To PC1192.7 9 (C) or 1192.8: [X] YES [ ] NO

PC 290 Registrant: [X] YES* [ ] NO * If Yes, Sex Offender Static Risk Assessment: Score: **4**

Other Registration Requirements: [ ] PC 457.1 [ ] PC 186.30 [X] NONE

Circumstances of Commitment Offense (Note any weapons used or possessed during the controlling or non-controlling offense):

According to Santa Clara County Probation Officer's Report, Santa Clara Police Department officers responded to a report of sexual assault which occurred at the Santa Clara University. The Victim (V1) stated she left her friend's dormitory at 2000 hours and proceeded to her dormitory. As she was walking, a man later identified as Brendan Newanforbi, approached her from behind, picked her up and carried her approximately five feet. Newanforbi dropped V1 on the ground and inserted his fingers into her vagina. V1 screamed and resisted Newanforbi so Newanforbi fled the scene. V1 was transported to the Valley Medical Center for a SART exam. V1 sustained abrasions to her left knee, left hip area, left wrist and complained of pain to her vagina. Officers reviewed surveillance footage from cameras and showed a figure running, and a grey ford mustang fleeing the scene. On 03/03/2017, Newanforbi was stopped for speeding and taken into custody for matching the description. Newanforbi self- admitted to groping V1 and stated he had uncontrollable urges and needed help.

Prior Criminal History: (Note any history of weapons, serious or violent felonies and any other relevant criminal information):

[X] Criminal History Attached (Dated no more than 30 days prior to due date of DRR)

01/12/18-PC 289(A)(1)(A): SEXUAL PENETRATION W/FORCE/ETC, PC 220(A)(1): ASSAULT:W/INTENT TO RAPE (6 YEARS PRISON)

Special Conditions of Parole: [X] CDCR Form 1515- Addendum Attached (* If necessary.)

[ ] None [ ] Anti-Narcotic Testing [ ] Drug Treatment [X] No Alcohol [ ] Attend POC [X] * Other

Parole Violations: (Note any parole violations, arrests, pending investigations and/or dispositions incurred during this period of review)

2025-03-04 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Verbal Reprimand)
2025-06-26 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Referral to PACT Program, Verbal Reprimand)
2025-07-15 FAILURE TO CHARGE GPS TWICE PER DAY EVERY 12 HOURS FOR 1 FULL HOUR OF CHARGING COP (Verbal Reprimand)
2025-08-18 FAILURE TO PROPERLY CHARGE GPS DEVICE COP (Referral to PACT Program, Verbal Reprimand)

Gang Activity Or Affiliation: (Note any past or present involvement in any prison, criminal, or street gang)

[X] None Validated: [ ] Member [ ] Associate [ ] Affiliate [ ] Dropout [ ] Active [ ] Inactive

Gang:

Current or past activity:

Mental Health Factors (Note mental health status of the parolee and his or her compliance with any mental health treatment):

[ ] None [ ] Voluntary [X] CCCMS [ ] EOP [ ] MDO

If CCCMS/EOP/MDO: [X] Compliant [ ] Non - Compliant

[X] BHR Report Attached (Dated no more than 45 days prior to due date of DRR)

Restitution (Note any fine and/or restitution balance at the time of review, and any effort to satisfy the fine and/or restitution balance):

[X] None [ ] Satisfied [ ] Not Satisfied Amount remitted to date: $ **0** Outstanding balance: $ **0**

Employment (Note any employment, educational or vocational training):

Employment [X] None [ ] Employed [ ] Full Time [ ] Part Time

Student: [X] None [ ] Student [ ] Full Time [ ] Part Time

DISTRIBUTION: Original to C-File; Copy to Field File; Copy to Parolee

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Employer Name (If applicable):

Program Name (If applicable):

Position:

STATE OF CALIFORNIA
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DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

SECTION II PAROLEE DYNAMIC PROFILE **CATEGORY: SA** **CSRA: 2**

Objective 1: The parolee has maintained residence stability in a positive living environment.

1=Has been in the same pro-social living situation for eight months or longer; or less than eight months, but at least six months, when the most recent move was to improve overall living conditions, and will continue to be available to the parolee.

Objective 2: The parolee's time has been structured around pro-social activities geared towards self-reliance.

3=Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.

Objective 3: The parolee has been compliant with his or her general and special conditions of parole.

3=The parolee has not met the rating standard for #1 or #2 above.

Objective 4: The parolee was referred and participated in programming for his or her top three criminogenic needs.

3=Failed to attend, participate, or complete.

Objective 5: The parolee has affiliated himself or herself with other pro-social individuals.

2=Parolee is seeking to terminate anti-social relationships, but still maintains some anti-social relationships.

Objective 6: Parolee has been referred to and participated in required sex offender treatment.

2=Attended and partially participated in sex offender treatment.

Parolee Dynamic Profile Recommendation: **Retain On Parole**

Aggravating Factor(s) to Consider:

Supervised Person Brendan Newanforbi is unemployed, incurred multiple parole violations during this review period, and has not completed sex offender treatment.

Mitigating Factor(s) to Consider:

Supervised Person Brendan Newanforbi has stable residence with his family.

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

SECTION III RECOMMENDATION

Parole Agent Recommendation:

☐ Retain on Parole ☒ Discharge Denied/No Action

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

Parole Agent Comments / Recommendation:

Objective 1: Residence - Newanforbi currently has stable residence with his family in Stockton.

Objective 2: Employment - Newanforbi is currently unemployed.

Objective 3: General/Special Conditions - Newanforbi has incurred multiple parole violations during this review period.

Objective 4: Addressed Criminogenic Needs - Newanforbi's Criminogenic Needs for Substance Abuse rated Probable and Unlikely for all other categories.

Objective 5: Pro-Social - Newanforbi does not appear to have a large social circle.

Objective 6: Sex Offender - Newanforbi is not currently titrated and is not in the maintenance phase of his treatment with HOPE.

Supervised Person Brendan Newanforbi is a 29-year-old first termer committed to the California Department of Corrections and Rehabiliation for Penal Code 289(a)(1)(A) Penetration w/Force/Violence/Fear of Immediate Bodily Injury for 6 years in state prison. Newanforbi appears to have stable residence with his family in Stockton, CA. Newanforbi is currently unemployed and not attending school. Newanforbi has incurred multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System. Newanforbi is currently attending sex offender treatment and has not completed treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision. Continued supervision is both warranted and recommended at this time. Recommend discharge be denied at this time.

Parole Agent (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
LONG MOUA	**LONG MOUA**	**7472**	**11-14-2025**

Unit Supervisor Actions:

☒ Review ☒ Decision ☐ Retain On Parole ☒ Discharge Denied/No Action ☐ Refer to BPH

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

☒ Refer to Parole Administrator

Unit Supervisor Comments/ /Decision /Recommendation:

The subject should be commended for maintaining compliance with parole supervision. The subject is unemployed, and the subject lives with his family in Stockton. The subject has no restitution obligations and, the subject has had five parole violations this period. Subject's Sex Offender Treatment Progress (HOPE): 10/15/2024 Stable 6/LSCMI 5. Level 2 below average Risk. Missed 6 sessions this Parole Period. Core Phase of treatment and working in Block 1 Module 4/7. Subject has presented homework on Victim Empathy. Does take full responsibility of offense. Subject has a relapse prevention plan to assist in his alcohol and marijuana use. Current focus on problem solving and relationship stability focusing on healthy relationships. Not eligible for titration at this time. Currently scheduled for 2 groups a week and 1 monthly individual. HOPE SOT recommends continued treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Subject is not eligible for EDC at this time due to having a 10-year parole term. Eagan has only completed approximately 4 years of the required 6.5 years of supervision. I concur with the Parolee Dynamic Profile and AOR's recommendation "Retain on Parole". Continued DAPO supervision is warranted and recommended.

Unit Supervisor (Printed Name):	Electronically Signed by:	Badge #:	Date Signed:
GARY NOGUCHI	**GARY NOGUCHI**	**7284**	**11-19-2025**

Parole Administrator Actions:

☒ Review ☒ Decision ☐ Retain On Parole ☒ Discharge Denied/No Action ☐ Refer To BPH

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

Parole Administrator Comments / Decision/ Recommendation:

Concur with the Unit Supervisor, continued parole supervision is warranted and recommended at this time.

DISTRIBUTION: Original to C-File; Copy to Field File; Copy to Parolee

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Parole Administrator (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
KEELY DODD	**KEELY DODD**	**6462**	**11-19-2025**

Parolee Provided Copy (Date)

☐ Mailed By (Initials): ☐ Delivered By (Initials):

AGENT OF RECORD CONTACT INFORMATION AS OF 11/19/2025

AGENT NAME: ROJO, JOSEELYN

AGENT CONTACT: JOSEELYN.ROJO@CDCR.CA.GOV, (510) 871-7372 (Cell)

PAROLE UNIT: STOCKTON 2 GPS, 612 CARLTON AVENUE, STOCKTON, CA, 95203, (209) 948-7652

DISTRIBUTION: Original to C-File; Copy to Field File; Copy to Parolee

EXHIBIT B

ENDORSED FILED
SAN MATEO COUNTY
MAR 20 2023
Clerk of the Superior Court
By VALERIE HRONIS
DEPUTY CLERK

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN MATEO

In re:	Case No. SC-080355A
FREDERICK DWYER.	HC-3020
On Habeas Corpus.	**ORDER**

FACTS AND ALLEGATIONS

On January 23, 2015, Petitioner pled no contest to one count of Penal Code section (PC §) 286(c)(2) (sodomy by force). He also admitted allegations pursuant to Penal Code section 1192.7(c)(4) and 667.5(c)(4) (admitting that the current offense was serious and violent). On March 10, 2015, the Court denied probation and sentenced Petitioner to the lower term of three years in the California Department of Corrections and Rehabilitation. As a condition of sentence, Petitioner was ordered to register pursuant to the terms of Penal Code § 290.

Petitioner was released on parole in 2017. Among other conditions, he was ordered as a special condition of parole to participate in a sex offender management program as required by Penal Code § 3008(d). In the present writ before the court, Petitioner challenges the continued imposition of the special condition of parole on two grounds: 1) that he has already successfully completed a sex offender management program as required, but is currently being ordered to complete a second program; and 2) he asks the court to exercise its discretion pursuant to Penal

Code § 3008(d) to limit the length of the sex offender management treatment program to a term less than the entire term of his parole.

Petitioner submitted his writ petition on June 22, 2021 in Alameda County Superior Court. The People, through the Attorney General, submitted an informal response requesting denial of the petition on August 20, 2021. Petitioner filed a reply on August 27, 2021. The Honorable Morris Jacobson ordered the writ petition transferred to San Mateo County Superior Court on October 22, 2021, finding that venue was more appropriate in the committing court. This Court issued an order to show cause on January 13, 2022. Respondent filed their return on April 14, 2022, and Petitioner filed a Traverse and Denial on May 11, 2022. This Court issued an order for evidentiary hearing on disputed facts on October 20, 2022. The hearing was continued and ultimately heard on March 9, 2023. Petitioner testified on his own behalf. Respondent presented the testimony of Dr. Cristina Loree, Gilberto Haro, and Daniel Stout. The parties stipulated to the admission of each of their marked exhibits. The Court has considered all filed written pleadings, all admitted exhibits, the testimony of each witness, and the arguments of counsel in rendering the following decision.

DISCUSSION

I. Factual Findings

The facts established at the evidentiary hearing in this matter are largely undisputed. Pursuant to the parties' written stipulation filed March 2, 2023, Petitioner was released on parole on May 30, 2017. He has suffered one parole violation to date in September 2019 for a physical altercation with his wife. The altercation did not result in the filing of a new criminal case, and Petitioner's parole violation resulted in a custodial sanction of six days. Petitioner has otherwise complied with his parole conditions, and has been recommended for early discharge from parole. The Board of Parole Hearings denied the recommended early discharge because Petitioner has not yet served the minimum term of parole required for his commitment offense.

Pursuant to a special condition of parole, Petitioner is required to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program.

The program will require you to agree and sign necessary documents and waivers as well as polygraph examinations, limited to questions about the success of the sex offender treatment program, the crime(s) for which you were convicted, compliance with conditions of parole, sexual history and related criminal behavior past, present, and/or future." (Exhibit 3H). At the time of Petitioner's release on parole, the Division of Adult Parole Operations in Petitioner's area of supervision contracted with a program called Shaping Success. Shaping Success is a California Sex Offender Management Board (CASOMB) approved sex offender management program. The evidence at the hearing established that the Shaping Success program consisted of a "treatment" phase and a "maintenance" phase. During the treatment phase, Petitioner testified that he was initially required to participate in weekly group meetings and individual monthly counseling sessions with Shaping Success. He participated in treatment with Shaping Success for three years. On January 12, 2021, the Shaping Success program issued a "Statement of Successful Treatment Completion" regarding Petitioner's treatment. (Exhibit 9H). The certificate stated, in relevant part on its face, that:

> [t]he term 'successful treatment completion' is defined as having 'demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan' at the time of release from treatment. ... Treatment completion does not mean that the client has successfully completed the sex offender management program, or that the client will never reoffend. When active treatment ends, supervision and other elements of the Containment Model may continue. These elements may include, but are not limited to, monitoring, follow-up sessions, aftercare meetings, polygraph testing, risk assessments, and other services which may be required as part of a sex offender management program, i.e., CASOMB Sex Offender Treatment Provider Agency Certification Requirements.

At the completion of the "treatment" phase of Shaping Success, Petitioner was moved into the "maintenance" phase of the program. Petitioner testified that in the "maintenance" phase, he was no longer required to attend any group sessions and his individual sessions were reduced to once a month. He was also required to participate in annual polygraph examinations.

After Petitioner had completed the treatment phase of Shaping Success, the Division of Adult Parole Operations contracted with a new CASOMB provider for sex offender

management – the HOPE program. Petitioner was required to participate in treatment at the HOPE program beginning on March 5, 2021. (Exhibit 6H). Dr. Cristina Loree, Executive Director of Clinical Training and Development at the HOPE Program, testified that HOPE's sex offender management program consists of four phases. When participants first report to the program, the program administers static and dynamic risk assessment tools and obtains a full biopsychosocial history of the participant. Clients are referred to treatment based on their risk assessment scores. The first phase of the program is preparatory for treatment, consisting of seven modules. The second phase of the program, referred to as "core treatment", consists of twenty four modules. In the core treatment phase, sex offenders designated as "high risk" based on their risk assessment scores are required to attend groups twice weekly and once a month individually. "Low risk" offenders participate in groups once weekly and individual sessions once a month. The third phase of the program is "maintenance", consisting of twelve modules. In the maintenance phase, participants have group meetings no less frequently than every other week, and individual sessions no less than quarterly. Completion of all twelve modules is required to complete the maintenance phase, and group sessions are the primary method that the program uses to assess completion of the modules. Upon completion of maintenance, the fourth phase of the program is "aftercare". In aftercare, participants have no group sessions, individual meetings only as needed at the discretion of their clinicians, and twice yearly polygraph examinations. Dr. Loree characterized participation in "aftercare" as voluntary for those no longer on parole, but mandatory for those who have not yet discharged from parole based on the need to maintain a connection to treatment. Dr. Loree testified that she believes a continuous connection to treatment is required for all sex offender parolees based on Penal Code § 3008's provision that the duration of a sex offender management program can be up to the entire term of parole.

When HOPE became the sex offender management provider for Petitioner's region, they devised the following general process for participants who were in the maintenance phase of the Shaping Success program. The participants were required to complete the seven module treatment preparation phase, submit a non-deceptive polygraph examination, and undergo a

risk assessment. Upon completion of those three requirements, participants were then moved into the maintenance phase of the HOPE program. Dr. Loree was unable to describe exactly when Petitioner went through that screening process and was moved to maintenance. Petitioner testified that when he first began with HOPE he was required to attend groups twice weekly in addition to individual sessions for the first three months of his participation in the program. After that, Petitioner testified that he was moved to the maintenance phase of the HOPE program – he currently attends groups once every two weeks and individual sessions quarterly. Dr. Loree confirmed that this is the lowest level of treatment available in HOPE's maintenance phase. Dr. Loree testified that Petitioner has completed four of the twelve maintenance phase modules. His attendance has been "near perfect". His STATIC-99R score is 4, which is categorized as high risk. The STATIC-99R measures risk factors that generally do not change over time with the exception of age at last release from prison. HOPE has administered two dynamic risk assessments to Petitioner – the Stable-2007 and the LS/CMI. His most recent Stable-2007 score is 2, and his most recent LS/CMI score is 6. Both are categorized as low risk. (Exhibit 7). Dr. Loree testified that Petitioner's overall risk assessment, taking both the STATIC-99R score and the dynamic risk assessment scores into account, is average risk – classified as an 8% likelihood of sexual recidivism within 5 years as compared to the overall population of individuals convicted of sexually motivated offenses.

Petitioner is married, has stable housing, and is presently employed. He is the sole wage earner in his household. He has reached journeyman level in his carpenter's union. He is enrolled in community college courses in pursuit of his Associate of Arts degree, with the goal of becoming a construction superintendent. Since the 2019 parole violation, his parole performance has been positive. (Exhibit 5H). He asserts that the increased frequency of group meetings since his transition from the Shaping Success program to the HOPE program is interfering with his ability to meet his employment obligations.

II. Legal Discussion

A. Failure to Exhaust Remedies

The Attorney General argues that this Court should deny the writ because Petitioner has failed to exhaust his administrative remedies before seeking writ relief, citing In re Muszalski (1975) 52 Cal.App.3d 500, 508. While it is true that exhaustion is typically required before a writ of habeas corpus may be granted, there is an exception to the requirement of exhaustion where an aggrieved party "can positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. Petitioner is not "required to pursue a futile remedy." In re Thompson, *supra*, at 263.

In the instant petition, Petitioner filed a grievance on June 11, 2021 prior to filing the instant writ petition. The grievance and response were admitted as Exhibits 7H and 8H. Petitioner's grievance sought to be "placed back on maintenance with the same frequency of contact that I had with Shaping Success provider." (Exhibit 7H.) On July 28, 2021, Petitioner's grievance was denied on the grounds that Penal Code § 3008(d)(2) and Petitioner's special condition of parole required him to participate in sex offender treatment "while under parole supervision", and that HOPE's program staff had stated that Petitioner would be moved to HOPE's maintenance phase with once per week group sessions and monthly individual sessions. (Exhibit 8H.) At the hearing, the Court heard the testimony of Gilberto Haro, presently responsible for overseeing the operations of five parole units within the East Bay where Petitioner is supervised. Mr. Haro participated in the review and denial of Petitioner's grievance. He supervises Petitioner's assigned parole agent. Mr. Haro testified unamibiguously that the treatment provider determined Petitioner's appropriate level of treatment and parole denied Petitioner's grievance in deference to that decision. Mr. Haro further testified that he understands Penal Code § 3008(d)(2) to require a sex offender parolee to participate in a sex offender management program for the entire term of parole.

The Attorney General further presented the testimony of Daniel Stout, who previously supervised the East Bay parole region and is currently assigned to the sex offender unit of parole headquarters. Mr. Stout participates in the drafting and editing process for contracts between CASOMB certified sex offender management program providers and the Division of Adult Parole Operations. He testified that it is the policy of the California Department of

Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge from parole. This was consistent with Dr. Loree's testimony of her understanding that Penal Code § 3008(d)(2) requires sex offender parolees to maintain "some connection to treatment" for the entire period of parole until discharge. Dr. Loree testified that Petitioner would be required to complete all twelve modules of maintenance with the HOPE program before moving to aftercare.

Petitioner's grievance sought admission to "maintenance" with the same level of program contact that had been required at Shaping Success – monthly individual check-ins and no group treatment. The testimony at the evidentiary hearing established that the minimum level of supervision required for "maintenance" at HOPE is participation in group meetings every other week and quarterly individual sessions. The testimony of the parole witnesses established that any appeal of Petitioner's grievance denial would be a futile act – the Division of Adult Parole Operations defers to the treatment provider's determination of the frequency of treatment, and HOPE's minimum maintenance treatment requirement exceeds the amount of programming required by the former provider. In this case, Petitioner can positively state what the administrative agency's decision in his particular case would be. The Court finds that he is not required to exhaust remedies under these circumstances.

B. Mootness/Unripe for Review

The Attorney General further contends that the petition is moot or unripe for review because Petitioner has already "received the relief he requested." Respondent's Return to the Order to Show Cause; Supporting Memorandum of Points and Authorities, p. 13, L. 23. It is apparent from the face of both the grievance and the petition for habeas corpus that Petitioner has not received the relief that he requested. Petitioner requested to be "placed back on maintenance *with the same frequency of contact that I had with Shaping Success provider*". (emphasis added by the Court). The evidence at the hearing amply demonstrated that not only has Petitioner **not** been placed in treatment at the same frequency of contact as previously required, but that the structure of the HOPE program makes it impossible for him to be placed

on the same level of contact. He will either be included in the maintenance phase, which requires group meetings every other week that Shaping Success did not require; or he will eventually transition to aftercare, which includes individual check-ins "as directed" rather than monthly.

Further, Petitioner's writ relief request seeks relief beyond that described in his parole grievance. He seeks a declaration by the Court that he has successfully completed the required sex offender management program defined in Penal Code § 3008, and that the Court order the Department of Corrections and Rehabilitation to cease requiring Petitioner's participation in an "additional" sex offender management program. As discussed above in relation to exhaustion, it is apparent from the testimony offered at the hearing that the Division of Adult Parole Operations takes the position that a "sex offender management program" cannot be completed prior to discharge from parole, and that Petitioner's completion of the treatment phase of the Shaping Success program does not satisfy the obligation for completion of a "sex offender management program". The Attorney General's contention that the petition is moot or unripe lacks merit.

C. Length of Participation in Sex Offender Treatment/Management

1. Habeas Corpus Relief

The fundamental goals of parole are to "'help individuals reintegrate into society as constructive individuals'", "'to end criminal careers through the rehabilitation of those convicted of crime'", and to [help them] become self-supporting." In re Hudson (2006) 14 Cal.App.4th 1, at p. 9, citing In re Stevens (2004) 119 Cal.App.4th 1228 at 1233. A condition of parole will not be held invalid unless it 1) has no relationship to the crime of which the offender was convicted, 2) relates to conduct which is not in itself criminal, and 3) requires or forbids conduct which is not reasonably related to future criminality. Conversely, a condition of parole which requires or forbids conduct which is not itself criminal is valid if that conduct is reasonably related to the crime of which the defendant was convicted or to future criminality. People v. Lent (1975) 15 Cal.3d 481 at 486.

Penal Code § 3008(a) requires the Department of Corrections and Rehabilitation to "ensure that all parolees under active supervision who are deemed to pose a high risk to the public of committing sex crimes, as determined by the State-Authorized Risk Assessment Tool for Sex Offender (SARATSO), … are placed on intensive and specialized parole supervision." Penal Code § 3008(c) further requires the Department to "develop control and containment programming for sex offenders who have been deemed to pose a high risk to the public of committing a sex crime, as determined by the SARATSO, and **shall** require participation in appropriate programming as a condition of parole." (emphasis added by the Court). Penal Code § 3008(d)(2) provides that:

> Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crimes were committed.

Petitioner was convicted of sodomy by force, with the resulting requirement that he register as a sex offender pursuant to Penal Code § 290. The Static-99R is the SARATSO used by the Department to determine risk level, and the hearing evidence establishes that Petitioner's SARATSO score places him in the "high-risk" category. The challenged special condition of parole requiring him to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program" is statutorily required. Applying the Lent test, Petitioner's habeas corpus claim fails. On its face, the challenged special condition of parole is reasonably related both to the crime of which Petitioner was convicted and to his future criminality.

Petitioner's argument that his completion of the "treatment" phase of Shaping Success qualifies as completion of the single sex offender management program required by Penal Code § 3008 is without merit. Petitioner's completion of group counseling with Shaping Success did not result in the termination of his further participation in the program. He was still required to report monthly for individual check-ins and to complete periodic polygraph

testing. His certificate of treatment completion expressly stated that it was not certification that had completed the sex offender management program and that further requirements applied. Petitioner never "completed" a sex offender management program, and the current requirement for participation in the HOPE program is a continuation of the original program with a different provider – not a second program. Petitioner's habeas corpus claim is denied.

2. Court Approval of Length of Participation in Sex Offender Management Program per Penal Code § 3008(d)(2)

Petitioner further asks the Court to exercise the statutory discretion conferred by Penal Code § 3008(d)(2) to set the length of the required sex offender management program in his case as something less than the entire period of parole. The Court grants that request for the following reasons. Penal Code § 3008(d)(2) fixes the length of a sex offender management program as no less than one year and up to the entire period of parole "as determined by the sex offender management professional in consultation with the parole officer and as approved by the court." The evidence in this case demonstrates that the "consultation" contemplated by the statute between the sex offender management professional and parole in this case worked only one way – the program told parole what was required and parole deferred. The HOPE program's determined level of necessary treatment for parolees who had completed Shaping Success's treatment phase was not dependent on individualized criteria. All parolees moving into the HOPE program were required to complete at least two new sets of group counseling – the "pre-treatment" seven module phase, and the "maintenance" twelve module phase – without regard to their individual risk assessments[1], likelihood of re-offense, or history on parole supervision. Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully "complete" a sex offender management treatment program short of being discharged from parole. The discretion

[1] While Dr. Loree's testimony established that HOPE conducted both static and dynamic risk assessments on intake, the testimony also established that all offenders had to complete the seven module "pre-treatment" phase, and all were placed into the twelve module maintenance phase regardless of score. There was apparently no evaluation as to whether maintenance or aftercare placement was appropriate, and no explanation of how the Shaping Success treatment "curriculum" differed from HOPE's such that HOPE's programming was non-duplicative of that already completed by Shaping Success parolees in the "maintenance" phase.

conferred by statute on the Division of Adult Parole Operations and this CASOMB provider is apparently being exercised in all cases to require participation in a sex offender management program for the entire term of parole, apparently without reference to the individualized performance of each parolee. Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and "up to" the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole.

The Court, in other cases, has certainly encountered parolees for whom public safety demands participation in a sex offender management program for the entire term of parole. Such a requirement may be justified by a parolee's resistance to supervision, refusal to genuinely engage in treatment, refusal to accept responsibility for the commitment offense, and other similar factors. None of those considerations are present in Petitioner's case. The Legislature's guidance on the purpose of parole is as follows:

> [T]he period immediately following incarceration is critical to successful reintegration of the offender into society and to positive citizenship. It is in the interest of public safety for the state to provide for the effective supervision of and surveillance of parolees, including the judicious use of revocation actions, and to provide educational, vocational, family, and personal counseling necessary to assist parolees in the transition between imprisonment and discharge. Penal Code § 3000(a)(1).

In this case, the undisputed evidence establishes that Petitioner is meeting the goals of successful reintegration into society. His prior CASOMB-certified provider certified to parole that he had "demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan" so as to no longer require group counseling. (Exhibit 9H). He has stable housing and employment. He has progressed in his trade and has enrolled in community college to advance his career prospects. He has a stable family. His performance on parole for at least the last three years has been so positive that his supervising parole officer has recommended his complete discharge from parole supervision, and that recommendation was approved for submission to the Board by multiple supervisory layers of parole administration. Petitioner's other special conditions of parole require in relevant part:

continuous GPS monitoring, parole approval of employment, parole approval of residence with accompanying curfew hours, restrictions on travel, substantial restrictions on use of any computer with accompanying search conditions, and participation in both substance abuse and mental health treatment as directed by parole. Petitioner's other parole conditions are sufficient to meet the public safety requirement for effective supervision and surveillance. His continued engagement in the HOPE program does not serve to "assist [Petitioner] in the transition between imprisonment and discharge", since his parole agent and that agent's supervisors have apparently determined that he is ready for a recommended earned discharge. The Court exercises the authority conferred by Penal Code § 3008(d)(2) to disapprove any further participation in a sex offender management program as a condition of Petitioner's parole, and fixes the length of the required sex offender management program as terminating on March 20, 2023.

DISPOSITION

For the foregoing reasons, the Petition for Writ of Habeas Corpus is HEREBY DENIED. Pursuant to the authority granted by Penal Code § 3008(d)(2), the Court disapproves any further participation in a sex offender management program as a condition of parole, and fixes the length of the sex offender management treatment program required by his sentence as terminating on March 20, 2023.

DATED: _____

ELECTRONICALLY SIGNED

Judge Elizabeth M. Hill
Electronically signed.
Redwood City, CA
2023.03.20
12:24:08-07'00'

Elizabeth M. Hill
Judge of the Superior Court of California
San Mateo County

EXHIBIT C

DEPARTMENT 86 LAW AND MOTION RULINGS

Case Number: 23STCP02378 **Hearing Date:** December 13, 2023 **Dept:** 86

ALLIANCE FOR CONSTITUTIONAL SEX OFFENSE LAWS, INC. v. MACOMBER

Case Number: 23STCP02378

Hearing Date: December 13, 2023

[Tentative] ORDER OVERRULING DEMURRER

Respondent, Jeff Macomber, Secretary of the California Department of Corrections and Rehabilitation (CDCR), demurs to the petition for writ of mandate filed by Petitioners, Alliance for Constitutional Sex Offense Laws, Inc., Christopher Sandahl, Joshua Morales, Alexander Flores, John Doe # 1, and John Doe # 2 (collectively, Petitioners).

Petitioners' unopposed Request for Judicial Notice (RJN) of Exhibits A and B is granted.

SUMMARY OF PETITION ALLEGATIONS

The five individual Petitioners are parolees subject to the jurisdiction of the CDCR. Petitioner, Alliance for Constitutional Sex Offense Laws, Inc., is a non-profit organization. (Pet. ¶¶ 9-17.)

Petitioners contend "CDCR's regulations, policies, and practices are inconsistent with and in conflict with the statutory requirements of the 'Containment Model' of parole supervision codified in Penal Code section 3008, subds. (d)(1)-(d)(4), and related statutes." (Pet. ¶ 1.)

The petition alleges Penal Code section 3008, subdivision (d) and related statutes codify the Containment Model. (Pet. ¶¶ 20-24.) The petition explains Penal Code "Section 3008(d) requires each Registrant on parole to 'successfully complete **a** sex offender management program . . . as a condition of parole.' (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.)" (Pet. ¶ 2.) "[T]he Legislature declared that 'the length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court.' (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.) In other words, Section 3008(d) requires CDCR to provide Registrants the opportunity to 'complete,' and thereby terminate their participation in, the management program as early as one year after placement on parole." (Pet. ¶ 3.)[1]

As relevant to this demurer, the petition alleges, in conflict with Penal Code section 3008, subdivision (d), CDCR regulations, policy, and practice do not allow registrants to complete and discontinue the management program prior to discharge from parole. (Pet. ¶¶ 31-55, 57-60.) Among others, relevant allegations in support of this claim include the following:

> The only CDCR regulation that expressly implements Section 3008 and the management program it requires as a condition of parole is Title 15, Section 3573, of the Code of Regulations. . . . Notably, no provision of Section 3573 or any other regulation allows for the 'completion' of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates. (Pet. ¶ 32.)
>
> Notably, the Operations Manual for CDCR's Division of Adult Parole Operations confirms that Registrants are retained in the management program for the duration of their parole term, regardless of whether continued participation is necessary. . . . (Pet. ¶ 33.)
>
> [U]pon information and belief, as a matter of policy and practice, CDCR does not permit any Registrant to 'complete' the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense. (Pet. ¶ 34.)
>
> CDCR recently confirmed its policy in the habeas corpus proceeding captioned *In re Frederick Dwyer* (See Exh. A, Order dated March 20, 2023 in San Mateo Co. Super. Ct. Case No. SC-080355A, HC-3020). (Pet. ¶ 35 and Exh. A.)
>
> The Registrant challenged the requirement to repeat the treatment curriculum in a petition for writ of habeas corpus, invoking the Court's discretionary authority to terminate a sex offender management program after one year pursuant to Section 3008. The Court held an evidentiary hearing at which it found that the sole basis for retaining the Registrant in the management program was CDCR's policy of requiring all Registrants to participate in the program for the duration of parole, regardless of their individual treatment needs. (Exh. A, at p. 10.) CDCR agents including the Registrant's individual parole agent, as well the parole administrator for the East Bay District (Alameda and Contra Costa County), confirmed that policy in response to the Court's inquiry:
>
> [THE COURT:] Have you ever during the time that you have been in the positions that you have described were responsible to 290 registrants seen a participant in a sex offender management program complete such a program prior to[] termination or discharge from parole?
>
> THE [CDCR] WITNESS: No.
>
> THE COURT: Is it essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program . . . ?
>
> THE [CDCR] WITNESS: Yes.

(Transcript of Hearing on February 9, 2023 in *In re Dwyer*, (San Mateo Co. Super. Ct. Case No. SC080355A, HC-3020). See also Order, Exh. A, at pp. 6-7 ["[A former East Bay region supervisor from CDCR] testified that it is the policy of the California Department of Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge 3 from parole."].) (Pet. ¶ 39.)

Based on these and other allegations, Petitioners seek a writ of mandate directing Respondent "to amend and revise its regulations implementing Penal Code section 3008(d), including its Regulations at Code of Regulations, Title 15, section 3573, to permit Penal Code section 290 Registrants supervised by CDCR on parole to complete and be terminated from the sex offender management program required by Penal Code section 3008(d) after one year in the program, and prior to discharge from parole." (Pet. ¶¶ 56-61 and Prayer ¶ A.)

In the second cause of action for declaratory relief, Petitioners pray for "a judgment declaring that Penal Code section 3008(d) prohibits CDCR from retaining, as a matter of policy or practice, all Registrants in a sex offender management program for the entire term of parole." (Pet. ¶¶ 63-68 and Prayer ¶ B.)

LEGAL STANDARD FOR DEMURRER

A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civil Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The allegations in the petition must be liberally construed in favor of a petitioner on demurrer. (See *Mobil Oil Corp. v Exxon Corp.* (1986) 177 Cal.App.3d 942, 947.) "A demurrer must dispose of an entire cause of action to be sustained." (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

ANALYSIS

First Cause of Action – Writ of Mandate

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The first cause of action is for ordinary mandate pursuant to Code of Civil Procedure section 1085. There are two essential requirements to the issuance of an ordinary writ of mandate:

(1) a clear, present, and ministerial duty on the part of the respondent, and (2) a clear, present, and beneficial right on the part of the petitioner to the performance of that duty. (*California Ass'n for Health Services at Home v. Department of Health Services* (2007) 148 Cal.App.4th 696, 704.) "An action in ordinary mandamus is proper where . . . the claim is that an agency has failed to act as required by law." (*Id.* at 705.)

"Generally, mandamus is available to compel a public agency's performance or to correct an agency's abuse of discretion when the action being compelled or corrected is ministerial." (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700.) "A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists." (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.)

" 'While, of course, it is the general rule that mandamus will not lie to control the discretion of a court or officer, meaning by that that it will not lie to force the exercise of discretion in a particular manner . . . [it] will lie to correct abuses of discretion, and will lie to force a particular action by the inferior tribunal or officer, when the law clearly establishes the petitioner's right to such action.' " (*Flores v. Dept. of Corrections & Rehabilitation* (2014) 224 Cal.App.4th 199, 208.)

Respondent argue Petitioners have not stated a cause of action for mandate because:

(1) Petitioners failed to exhaust their administrative remedies in CDCR's "robust administrative grievance and appeal process (Memo 11:6-7); (2) the petition provides "no factual support" (Memo 12:18); (3) Petitioners "fail to establish a ministerial duty or valid rule making challenge" related to CDCR's regulations (Memo 16:12); and (4) Petitioners have an adequate legal remedy in a petition for writ of habeas corpus. (Memo 16:16.)

Petitioners assert the demurrer misapprehends the nature of the petition and fails to address all pertinent allegations. The court agrees. Respondent's demurrer does not persuasively address Petitioner's specific legal claim or all pertinent allegations, including those based on evidence from *In re Frederick Dwyer*. For that reason, and the additional reasons outlined below, the demurrer is overruled.[2]

Exhaustion of Administrative Remedies

Exhaustion of administrative remedies is "a jurisdictional prerequisite to judicial review." (*California Water Impact Network v. Newhall County Water Dist.* (2008) 161 Cal.App.4th 1464, 1489.)
"The exhaustion requirement applies whether relief is sought by traditional (Code Civ. Proc., § 1085) or administrative (Code Civ. Proc., § 1094.5) mandamus." (*Eight Unnamed Physicians v. Medical Executive Com.* (2007) 150 Cal.App.4th 503, 511.)

"Before seeking judicial review a party must show that he has made a full presentation to the administrative agency upon all issues of the case and at all prescribed stages of the administrative proceedings." (*Edgren v. Regents of University of California* (1984) 158 Cal.App.3d 515, 520.) There are exceptions to the exhaustion requirement, including "when the subject of the controversy lies outside the administrative agency's jurisdiction, when pursuit of an administrative remedy would result in irreparable harm, when the administrative agency cannot grant an adequate remedy, and when the aggrieved party can positively state

what the administrative agency's decision in his particular case would be." (*Edgren v. Regents of University of California, supra,* 158 Cal.App.3d at 520.)

Respondent contends CDCR's governing regulations establish a "robust administrative grievance and appeal process for inmates and parolees . . . to challenge imposed parole conditions or seek modifications of the conditions imposed before seeking judicial relief." (Memo 11:6-10 [citing Cal. Code Regs., tit. 15, § 3481, subd. (a).)[3] CDCR's exhaustion argument might be persuasive if Petitioners were seeking writs to terminate their own participation in a treatment program or other relief specific to their individual parole conditions. However, Petitioners do not seek such relief. Instead, Petitioners challenge the legality of CDCR's regulatory implementation of Penal Code section 3008 and the sex offender management and treatment program (SOMP) across the state. Petitioners "seek a writ of mandate directing CDCR to amend its regulations to authorize completion of and termination from the sex offender management program prior to discharge from parole." (See Pet. ¶ 6; see also ¶¶ 34-41, 56-61, and Prayer.)

The petition asserts certain CDCR promulgated regulations, in addition to its policies and practices for implementing such regulations, conflict with a controlling statute. Parties are "not required to exhaust administrative remedies" when they "attempt to enforce [an agency's] compliance with . . . controlling statutes," or when the challenged agency action "is based upon a regulation it promulgated." (*United Teachers-L.A. v. Los Angeles Unified School Dist.* (1994) 24 Cal. App. 4th 1510, 1519 n.4; *Sabatasso v. Superior Court* (2008) 167 Cal. App. 4th 791, 795.) While the regulation (Cal. Code Regs., tit. 15, § 3481, subd. (a)) does authorize the claimant to submit a grievance disputing a "policy" of CDCR, Respondent fails to develop an argument the regulation provides an administrative remedy for a challenge to CDCR's promulgated regulations and state-wide implementation of such regulations. Nor does Respondent cite any statutory authority or case law supporting its position.

Petitioners have sufficiently pleaded an excuse from the exhaustion requirement, including lack of adequate administrative remedy.

Petitioners Have Alleged Sufficient Facts to State a Cause of Action for Ordinary Mandate, including a Ministerial Duty

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Respondent contends "[t]here is no factual support for the petitioners' claim that all sex offenders must participate in all aspects of the SOMP [supervision, treatment, and polygraph] for the duration of their statutory parole term." (Memo 12:18-20.) Citing allegations pertaining to the individual Petitioners, Respondent contends "the petitioners' cherry-picked facts do not support their claim that sex offenders are always held to their statutory maximum parole period and required to participate in SOMP for that duration . . . ." (Memo 13:12-14.)

To be sure, Petitioners are not required to provide "factual support" at the pleading stage. "A pleading 'is sufficient if it alleges ultimate rather than evidentiary facts.' " (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1027.)

Petitioners have alleged the following ultimate facts, among others, in support of their traditional writ cause of action:

> [A]s a matter of policy and practice, CDCR does not permit any Registrant to 'complete' the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense. (Pet. ¶ 34.)

Although not required at the pleading stage, Petitioners have also pleaded certain evidentiary facts. For example, Petitioners allege in the *In re Frederick Dwyer Dwyer* habeas corpus proceeding, the trial court heard testimony from a CDCR regional supervisor reporting it is "essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program." (Pet. ¶ 39.)[4] The petition also provides information about how all five individual Petitioners have been "retained in the management program indefinitely rather than evaluated for termination from the program, as Section 3008(d) contemplates." (Pet. ¶¶ 43-55.) These ultimate facts and factual allegations are sufficient to state a claim.

Relatedly, Respondent contends Petitioners have not alleged a ministerial duty owed by Respondent and enforceable by mandate. (Memo 14:8-16:12.) Although the argument is not well developed and is unclear, Respondent appears to contend section 3573 of title 15 of the California Code of Regulations (Section 3573) "does not amend, impair, or limit the scope of section 3008(d)(2) as nothing in Penal Code section 3008(d)(2) prohibits nor mandates that the Secretary exercise his discretion in any particular manner." (Memo 15:26-28.) Respondent notes the "regulation does not exempt *any* sex offender parolees from requesting or being granted early discharge from their statutory parole period." (Memo 15:28-16:2.) That a sex offender parolee may request early discharge does not appear to inform on the validity of the regulation.

The petition is partly based on an alleged conflict between Section 3573 and Penal Code section 3008, subdivision (d) (see Pet. ¶ 32), but the petition also alleges "CDCR, ***as a matter of policy***, retain[s] all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense." (Pet. ¶ 34 [emphasis added].) Further, as to Section 3573, the petition alleges "no provision of Section 3573 or any other regulation allows for the 'completion' of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates." (Pet. ¶ 32.)

Respondent does not demonstrate Petitioner's allegations concerning Section 3573 are incorrect. Even if Section 3573 does not expressly prevent parolees from "requesting or being granted early discharge from their statutory parole period," as argued by Respondent, the petition sufficiently alleges the regulation is interpreted and implemented by CDCR in a manner that conflicts with Penal Code section 3008, subdivision (d).

"[M]andamus may issue to compel an official both to exercise his or her discretion (if he or she is required by law to do so) and to exercise it under a proper interpretation of the applicable law." (*California Assn. for Health Servs. at Home v. State Dept. of Health Care Servs.* (2012) 204 Cal.App.4th 676, 683; see also Gov. Code, § 11342.2. ["Whenever by the express or implied terms of any statute a state agency has authority to adopt regulations to implement, interpret, make specific or otherwise carry out the provisions of the statute, no regulation adopted is valid or effective unless consistent and not in conflict with the statute and reasonably necessary to effectuate the purpose of the statute."])

Because Petitioners have alleged CDCR's regulations, policies, and practices conflict with the controlling statutes, including Penal Code section 3008, subdivision (d), Petitioners have alleged a cause of action for traditional mandate.

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Petitioners Sufficiently Allege They Lack a Plain, Speedy, and Adequate Remedy in the Ordinary Course of Law

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Respondent contends Petitioners have an adequate legal remedy through a petition for writ of habeas corpus "to challenge their parole condition that requires them to participate in the SOMP." (Memo 17:6-7.)

The argument is unpersuasive for at least three reasons. First, it misapprehends the nature of Petitioners' writ claim as a challenge to individual parole conditions, rather than a challenge to Respondent's state-wide regulations, policies, and practices. Second, it ignores applicable case law, which held, in similar circumstances, that "[a] writ of habeas corpus . . . is not available 'in the ordinary course of law'" because it is "an extraordinary remedy." (*Villery v. Department of Corrections & Rehabilitation* (2016) 246 Cal. App. 4th 407, 415-16.) Finally, Respondent does not demonstrate, for purposes of a demurrer, that numerous habeas corpus petitions challenging CDCR's regulations, policies, and practice would be more "speedy" or "adequate" than a single writ petition raising the same claim.

Respondent does not addressed *Villery v. Department of Corrections & Rehabilitation* or Petitioners' other contentions regarding the inadequacy of habeas corpus petitions for the claim made in the petition. (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc., supra,* 111 Cal.App.4th at 1345, fn. 16 [failure to address point is "equivalent to a concession"].)

Petitioners have sufficiently alleged they lack a plain, speedy, and adequate remedy in the ordinary course of law.

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Demurrer for Uncertainty

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Respondent contends "use of the fictitious names John Doe # 1 and John Doe # 2 render the petition uncertain and ambiguous providing additional grounds for the Court to sustain the demurrer." (Memo 13:16-17.)

Demurrers for uncertainty are strictly construed. Discovery can be used for clarification. A demurrer for uncertainty is appropriate only where a defendant cannot reasonably determine what issues or claims are stated. (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) "[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend." (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.)

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Here, even with the use of fictitious names for Petitioner Does 1 and 2, Respondent can reasonably determine the nature of Petitioners' claims. Notably, Petitioners' claims are also based on allegations concerning the *In re Frederick Dwyer* litigation and the other, named individual Petitioners. Further, as discussed earlier, the petition does not seek writ relief as to any individual's parole conditions. Instead, Petitioners challenge Respondent's statewide regulations, policies, and practices. In these circumstances, the use of fictitious names for two of the Petitioners does not render the pleading uncertain as asserted by Respondent.

Respondent has not demonstrated his demurrer for uncertainty should be sustained.

New Reply Arguments

In reply, Respondent admittedly challenges the petition based on entirely new arguments not discussed in his demurrer. Specifically, Respondent contends: (1) Petitioners have not alleged sufficient facts to support a facial challenge to Section 3573 (Reply 3:5-6); (2) the petition allegations are insufficient because they are made on "information and belief" and "Petitioners do not rely on their own circumstances or experience in relation to th[e] alleged [unlawful] policy and practice" (Reply 6:9-11); (3) testimony from the *In re Frederick Dwyer* litigation is insufficient to state a cause of action for mandate (Reply 7:12-14); and (4) Petitioners have not alleged standing to make "as applied" challenges to CDCR's regulations, policies, and practices based on a "hypothetically similar petitioner." (Reply 7:14, fn. 3.)

"The salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before." (*Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010; see also *Regency Outdoor Advertising v. Carolina Lances, Inc.* (1995) 31 Cal.App.4th 1323, 1333.)

Respondent does not show good cause to raise new arguments in reply. The reply arguments are legal in nature and could have been raised in the demurrer. Respondent's counsel's meet and confer declaration states that on August 11, 2023 counsel for Respondent and Petitioner discussed "the Secretary's position that claims raised in the petition failed as a matter of law." (Heinisch Decl. ¶ 4.) Nonetheless, there is no explanation for failing to raise the Respondent's reply arguments in the demurrer. Petitioners have not had a full and fair opportunity to respond in writing to the arguments initially raised in Respondent's reply. Under the circumstances, the court declines to consider the new reply arguments summarized above.[5]

Second Cause of Action – Declaratory Relief

Respondent argues "Petitioners' claim for declaratory relief is wholly and entirely dependent on their claim for mandamus relief" and should be sustained. (Memo 17:10-11.) However, as argued by Petitioners, the second cause of action is based on Government Code section 11350, subdivision (a), in the Administrative Procedures Act and, therefore, is not derivative of the writ cause of action.[6] Respondent does not address the argument in reply and thereby concedes it for purposes of this demurrer. (*Sehulster Tunnels/Pre-Con, supra,* 111 Cal.App.4th at 1345, fn. 16.)

CONCLUSION

The demurrer is overruled.

IT IS SO ORDERED.

December 13, 2023

Hon. Mitchell Beckloff

Judge of the Superior Court

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[1] Specifically, Penal Code section 3008, subdivision (d)(2) provides: "(d) On or after July 1, 2012, the parole conditions of a person released on parole for an offense that requires registration pursuant to Sections 290 to 290.023, inclusive, shall include all of the following: . . . (2) Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed."

[2] In reply, Respondent does not specifically defend the arguments he made in his demurrer. Instead, Respondent makes entirely new arguments which is procedurally improper. In a footnote, Respondent states he "does not abandon any arguments raised in the demurrer. Respondent relies on the arguments as presented in the demurrer in addition to those presented in this reply." (Reply 3, fn. 1.) While Respondent may not have "abandoned" any legal arguments for purposes of this proceeding, he has not responded to many, if not all, of Petitioners' opposition arguments concerning the sufficiency of the pleading. (See *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is "equivalent to a concession"].)

[3] The regulation states in part: "A claimant has the ability to submit a written grievance to the department containing one or more claims, subject to the requirements in section 3482, to dispute a policy, decision, action, condition, or omission by the department or departmental staff. . . ." (Cal. Code Regs., tit. 15, § 3482, subd. (a).)

[4] Respondent wholly ignores the *In re Frederick Dwyer* allegations in the demurrer. In reply, Respondent argues the *In re Frederick Dwyer* allegations could only be relevant to a claim of collateral estoppel. (Reply 6:27-7:3.) The court disagrees. Whether the *In re Frederick Dwyer* decision has any collateral estoppel effect, testimony from that action may constitute judicial admissions or otherwise lead to evidence in support of Petitioner's claim. As a result, the ultimate ruling of the San Mateo County Superior Court in *In re Frederick Dwyer* is not determinative here. (See Reply 7:4-14.)

[5] Alternatively, even if the court considers the new reply arguments, the court reaches the same result and overrules the demurrer for the reasons discussed above and in Petitioners' opposition. Given the liberal pleading standard and the allegations that Respondent's regulations, policies, and practices are unlawful, including based on testimony from a CDCR regional supervisor in the *In re Frederick Dwyer* litigation, the reply arguments do not persuade the court that the demurrer should be sustained. Of course, Respondent is not precluded from further developing its arguments for the trial on the writ petition.

[6] Government Code section 11350, subdivision (a) states in pertinent part: "Any interested person may obtain a judicial declaration as to the validity of any regulation or order of repeal by bringing an action for declaratory relief in the superior court in accordance with the Code of Civil Procedure. . . . The regulation or order of repeal may be declared to be invalid for a substantial failure to comply with this chapter. . . ."

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. HOPE PSYCHOTHERAPY INC., ET AL., Defendant(s).	Case No. _____ (To be assigned by Clerk) CIVIL RIGHTS ACTION 42 U.S.C. § 1983

TRANSMITTAL OF NEW CIVIL ACTION

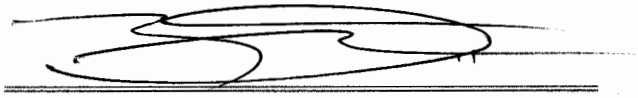
TO THE CLERK OF COURT:

Plaintiff, proceeding pro se, respectfully submits the following documents for filing as a new civil action pursuant to 42 U.S.C. § 1983:

1. Civil Cover Sheet (JS-44)
2. Application to Proceed In Forma Pauperis (AO 239)
3. Request for Electronic Notification (G-1145)
4. Complaint (with exhibits, if applicable)

DATED: January 19, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95204
Tel: (209) 801-4442
Email: bnn.cdl@gmail.com

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. *(SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)*

I. (a) PLAINTIFFS

BRENDAN NGEHSI NEWANFORBI, Pro Se

(b) County of Residence of First Listed Plaintiff San Joaquin, CA
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys *(Firm Name, Address, and Telephone Number)*

PRO SE PLAINTIFF

DEFENDANTS

HOPE PSYCHOTHERAPY, INC., et al.

County of Residence of First Listed Defendant Unknown
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys *(If Known)*

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ 1 U.S. Government Plaintiff
- ☒ 3 Federal Question *(U.S. Government Not a Party)*
- ☐ 2 U.S. Government Defendant
- ☐ 4 Diversity *(Indicate Citizenship of Parties in Item III)*

III. CITIZENSHIP OF PRINCIPAL PARTIES *(Place an "X" in One Box for Plaintiff and One Box for Defendant)*
(For Diversity Cases Only)

	PTF	DEF		PTF	DEF
Citizen of This State	☐ 1	☐ 1	Incorporated *or* Principal Place of Business In This State	☐ 4	☐ 4
Citizen of Another State	☐ 2	☐ 2	Incorporated *and* Principal Place of Business In Another State	☐ 5	☐ 5
Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

Click here for: Nature of Suit Code Descriptions.

CONTRACT
- ☐ 110 Insurance
- ☐ 120 Marine
- ☐ 130 Miller Act
- ☐ 140 Negotiable Instrument
- ☐ 150 Recovery of Overpayment & Enforcement of Judgment
- ☐ 151 Medicare Act
- ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
- ☐ 153 Recovery of Overpayment of Veteran's Benefits
- ☐ 160 Stockholders' Suits
- ☐ 190 Other Contract
- ☐ 195 Contract Product Liability
- ☐ 196 Franchise

REAL PROPERTY
- ☐ 210 Land Condemnation
- ☐ 220 Foreclosure
- ☐ 230 Rent Lease & Ejectment
- ☐ 240 Torts to Land
- ☐ 245 Tort Product Liability
- ☐ 290 All Other Real Property

TORTS

PERSONAL INJURY
- ☐ 310 Airplane
- ☐ 315 Airplane Product Liability
- ☐ 320 Assault, Libel & Slander
- ☐ 330 Federal Employers' Liability
- ☐ 340 Marine
- ☐ 345 Marine Product Liability
- ☐ 350 Motor Vehicle
- ☐ 355 Motor Vehicle Product Liability
- ☐ 360 Other Personal Injury
- ☐ 362 Personal Injury - Medical Malpractice

PERSONAL INJURY
- ☐ 365 Personal Injury - Product Liability
- ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
- ☐ 368 Asbestos Personal Injury Product Liability

PERSONAL PROPERTY
- ☐ 370 Other Fraud
- ☐ 371 Truth in Lending
- ☐ 380 Other Personal Property Damage
- ☐ 385 Property Damage Product Liability

CIVIL RIGHTS
- ☒ 440 Other Civil Rights
- ☐ 441 Voting
- ☐ 442 Employment
- ☐ 443 Housing/ Accommodations
- ☐ 445 Amer. w/Disabilities - Employment
- ☐ 446 Amer. w/Disabilities - Other
- ☐ 448 Education

PRISONER PETITIONS

Habeas Corpus:
- ☐ 463 Alien Detainee
- ☐ 510 Motions to Vacate Sentence
- ☐ 530 General
- ☐ 535 Death Penalty

Other:
- ☐ 540 Mandamus & Other
- ☐ 550 Civil Rights
- ☐ 555 Prison Condition
- ☐ 560 Civil Detainee - Conditions of Confinement

FORFEITURE/PENALTY
- ☐ 625 Drug Related Seizure of Property 21 USC 881
- ☐ 690 Other

LABOR
- ☐ 710 Fair Labor Standards Act
- ☐ 720 Labor/Management Relations
- ☐ 740 Railway Labor Act
- ☐ 751 Family and Medical Leave Act
- ☐ 790 Other Labor Litigation
- ☐ 791 Employee Retirement Income Security Act

IMMIGRATION
- ☐ 462 Naturalization Application
- ☐ 465 Other Immigration Actions

BANKRUPTCY
- ☐ 422 Appeal 28 USC 158
- ☐ 423 Withdrawal 28 USC 157

INTELLECTUAL PROPERTY RIGHTS
- ☐ 820 Copyrights
- ☐ 830 Patent
- ☐ 835 Patent - Abbreviated New Drug Application
- ☐ 840 Trademark
- ☐ 880 Defend Trade Secrets Act of 2016

SOCIAL SECURITY
- ☐ 861 HIA (1395ff)
- ☐ 862 Black Lung (923)
- ☐ 863 DIWC/DIWW (405(g))
- ☐ 864 SSID Title XVI
- ☐ 865 RSI (405(g))

FEDERAL TAX SUITS
- ☐ 870 Taxes (U.S. Plaintiff or Defendant)
- ☐ 871 IRS—Third Party 26 USC 7609

OTHER STATUTES
- ☐ 375 False Claims Act
- ☐ 376 Qui Tam (31 USC 3729(a))
- ☐ 400 State Reapportionment
- ☐ 410 Antitrust
- ☐ 430 Banks and Banking
- ☐ 450 Commerce
- ☐ 460 Deportation
- ☐ 470 Racketeer Influenced and Corrupt Organizations
- ☐ 480 Consumer Credit (15 USC 1681 or 1692)
- ☐ 485 Telephone Consumer Protection Act
- ☐ 490 Cable/Sat TV
- ☐ 850 Securities/Commodities/ Exchange
- ☐ 890 Other Statutory Actions
- ☐ 891 Agricultural Acts
- ☐ 893 Environmental Matters
- ☐ 895 Freedom of Information Act
- ☐ 896 Arbitration
- ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
- ☐ 950 Constitutionality of State Statutes

V. ORIGIN *(Place an "X" in One Box Only)*

☒ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District *(specify)* ☐ 6 Multidistrict Litigation - Transfer ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing ***(Do not cite jurisdictional statutes unless diversity)***:
42 U.S.C. § 1983

Brief description of cause:
Fourteenth Amendment due process violations in parole discharge review procedures.

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A **CLASS ACTION** UNDER RULE 23, F.R.Cv.P.

DEMAND $

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY *(See instructions):*

JUDGE _____ DOCKET NUMBER _____

DATE
January 19, 2026

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

2:26-CV-0195-TLN-AC (PS)